

NOTICE OF PUBLIC HEARING BEFORE THE PLANNING COMMISSION

The Provo City Planning Commission will hold a public hearing on May 13, 2026 at 6:00 PM. Located at: Council Chambers 445 West Center Street. The items listed below will be discussed, and anyone interested is invited to participate and provide comment. Hearings can be viewed live and on-demand at: YouTube youtube.com/user/ProvoChannel17 and on Facebook facebook.com/provochannel17.

NOTICE OF PUBLIC MEETING BEFORE PROVO MUNICIPAL COUNCIL

On Tuesday, **June 9, 2026**, at 5:30 PM. the Provo Municipal Council will consider the items noted below with a star (*). Items noted on the agendas with a star require legislative action by the Municipal Council. Council agendas can be viewed at the Provo City Council web site on the Thursday prior to the Council meeting at <http://agendas.provo.gov>. For more information, call (801) 852-6120.

Unmarked items are administrative and require the approval only of the Planning Commission. Decisions on the unmarked items may be appealed to the Board of Adjustment by making application by 6:00 PM. **within 14 days of the Planning Commission decision.**

Study Session

1. Data Center Discussion

Public Hearings

- * Item 1 Provo Public Works requests Ordinance Text Amendments to Provo City Code 15.05.180, Floodplain Management and Development Standards, to adopt new FEMA maps and update language within the ordinance. Citywide Application. Hannah Salzl (801) 852-6423 hsalzl@provo.gov PLOTA20260185
- Item 2 David Bragonje requests Concept Plan approval for a 46-unit condominium development in a proposed PRO-A10 (Arbors on the Avenue) Zone, located at 5568 N Canyon Rd. North Timpview Neighborhood. Aaron Ardmore (801) 852-6404 aardmore@provo.gov PLPPA20260077
- * Item 3 David Bragonje requests a Zone Map Amendment from the MDR (Medium Density Residential) Zone to the PRO-A10 (Arbors on the Avenue) Zone, along with amendments to the Development Agreement, in order to develop a 46-unit condominium project, located at 5568 N Canyon Road. North Timpview Neighborhood. Aaron Ardmore (801) 852-6404 aardmore@provo.gov PLRZ20260076
- Item 4 Dudley & Associates request Preliminary Subdivision approval for a two-lot residential subdivision in the R1.8 (One Family Residential) Zone, including a Variance request to Provo City Code 15.05.160, located at 2132 N Carterville Road. Carterville Neighborhood. Jessica Dahneke (801) 852-6413 PLPSUB20250356
- * Item 5 Reza Fakhrieh requests a Zone Map Amendment from the A1.5CH (Agricultural with Critical Hillside Overlay) and OSPR (Open Space Preservation and Recreation) Zones to the A1.1CH, RA (Residential Agricultural), and RACH Zones for a residential development with 75 lots and 50 townhomes, located approximately at 5450 N Canyon Rd. North Timpview Neighborhood. Jessica Dahneke (801) 852-6413 jdahneke@provo.gov PLRZ20260115

- Item 6 Reza Fakhrieh requests concept plan approval for a 155-acre residential development with 75 lots and 50 townhomes in proposed A1.1CH (Agricultural with Critical Hillside Overlay), RA (Residential Agricultural), and RACH Zones, located approximately at 5450 N Canyon Rd. North Timpview Neighborhood. Jessica Dahneke (801) 852-6413 jdahneke@provo.gov PLCP20260124
- * Item 7 *****CONTINUED***** Development Services requests an Ordinance Text Amendment to Provo City Code 15.24.030 to amend the area requirement for agriculture protection areas. Citywide Application. Jessica Dahneke (801) 852-6413 jdahneke@provo.gov PLOTA20260120

Preceding the public hearing, there will be a Study Session at 5:00 PM. at the Provo Peak Conference Room, 445 W Center Street. The Study Session is open to the public; however, formal presentation of items, public comment and actions will be reserved for the public hearing at 6:00 PM.

To send public comments to Planning Commission members, email them at dspublichearings@provo.gov. Please submit public comment emails before 3:00 PM the day of the hearing. Additional information can be found at provo.gov/publiccomments.

Copies of the agenda materials, public hearing procedure, and staff reports are available the week of the hearing at a reasonable cost at 445 W Center Street, Suite 200, Provo between the hours of 7:00 AM. and 6:00 PM., Monday through Thursday. Agendas and staff reports are also generally available on the Provo City Development Services web site the week of the meeting at provo.gov/agendacenter.

Provo City will make reasonable accommodations for all citizens interested in participating in this meeting. If assistance is needed to allow participation at this meeting, please call the Development Services Department at (801) 852-6400 before 12:00 PM. the day before the meeting to make arrangements.

By order of the Provo City Planning Commission
Planning Secretary, (801) 852-6424



***ITEM 1** Provo Public Works requests Ordinance Text Amendments to Provo City Code 15.05.180, Floodplain Management and Development Standards, to adopt new FEMA maps and update language within the ordinance. Citywide Application. Hannah Salzl (801) 852-6423 hsalzl@provo.gov PLOTA20260185

APPLICANT: Thomas Scherbel APPLICATION TYPE: Legislative Decision – Planning Commission will make a recommendation to the City Council.

NEIGHBORHOOD FEEDBACK

A neighborhood meeting was not held for this item.

PROJECT SUMMARY

The proposed update to Provo City Code Section 15.05.180 amends the City's floodplain regulations to better align with current FEMA requirements and the National Flood Insurance Program (NFIP), including adoption of updated Flood Insurance Rate Maps effective June 23, 2026. The ordinance expands definitions, clarifies administrative authority, and establishes more detailed procedures for Floodplain Development Permits, map revisions (CLOMR/LOMR), and certificates of occupancy. It also formalizes the role of the Floodplain Administrator and strengthens documentation and engineering requirements for development within Special Flood Hazard Areas (SFHAs).

Compared to the existing ordinance, the proposed code introduces more detailed and prescriptive development standards. These include requirements for elevation (maintaining 1-foot freeboard above Base Flood Elevation), floodproofing, floodway restrictions, manufactured housing, crawlspaces, and utilities, along with clearer rules for substantial improvement and damage determinations. The update also adds stronger enforcement mechanisms, including stop-work authority and penalties. Overall, the changes represent a shift from a basic compliance ordinance to a comprehensive floodplain management framework intended to reduce flood risk and improve regulatory clarity.

STAFF ANALYSIS

Before recommending an amendment, the Commission must find that the amendment serves the public interest and aligns with the General Plan, based on consideration of the following:

(a) Public purpose for the amendment in question;

Applicant Response: The public purpose of this amendment is to update the City's floodplain regulations to align with current requirements of the Federal Emergency Management Agency (FEMA), including adoption of the most recent Flood Insurance Rate Maps (FIRMs) and associated Flood Insurance Studies (FIS). This ensures continued eligibility in the National Flood Insurance Program (NFIP), promotes public

safety, and reduces risk to life and property from flooding.

Staff Response: This amendment is a prerequisite for the NFIP and reduces flood risk.

FINDING: Meets the standard.

(b) Confirmation that the public purpose is best served by the amendment in question;

Applicant Response: The proposed amendment is the most effective way to implement updated FEMA requirements at the local level. Adoption of updated maps and ordinance language ensures regulatory consistency, enables proper floodplain management, and gives access to federally backed flood insurance for property owners within the city.

Staff Response: Complying with FEMA standards and NFIP requirements serves public safety and welfare.

FINDING: Meets the standard.

(c) Compatibility of the proposed amendment with General Plan policies, goals, and objectives;

Applicant Response: The amendment is compatible with the City's General Plan, particularly goals related to public safety, infrastructure resilience, and responsible land use. Updating floodplain regulations supports long-term planning efforts by minimizing flood risk and guiding development within Special Flood Hazard Areas (SFHA) shown in the FIRMs.

Staff Response: The amendment is compatible and furthers General Plan goals.

FINDING: Meets the standard.

(d) Consistency of the proposed amendment with the General Plan's "timing and sequencing" provisions on changes of use, insofar as they are articulated;

Applicant Response: The amendment is consistent with the General Plan's timing and sequencing provisions, as it represents a regulatory update required to reflect current federal mapping and standards. It does not introduce new development patterns. It does make sure that existing and future development within the SFHA complies with updated floodplain data and regulations.

Staff Response: The amendment is consistent, and there are no conflicts.

FINDING: Meets the standard.

(e) Potential of the proposed amendment to hinder or obstruct attainment of the General Plan's articulated policies;

Applicant Response: The proposed amendment will not hinder or obstruct attainment of General Plan policies. Instead, it supports those policies by promoting hazard mitigation, protecting infrastructure, and encouraging development practices that reduce long-term risk.

Staff Response: The amendment furthers General Plan goals. Staff do not foresee any way in which the amendment would hinder or obstruct or otherwise be in conflict.

FINDING: Meets the standard.

(f) Adverse impacts on adjacent landowners; and

Applicant Response: The amendment is not expected to create adverse impacts on adjacent landowners. While updated FEMA maps may change floodplain boundaries for certain properties, these changes are based on the best available scientific data and are applied uniformly. The ordinance itself does not impose impacts beyond those necessary to comply with federal requirements and protects public safety.

Staff Response: Because these amendments are required for NFIP, they are essential for landowners. Some landowners might be included in new floodplain areas on the new maps, but the amendment still serves their best interests.

FINDING: Meets the standard.

(g) Verification of correctness in the original zoning or General Plan for the area in question.

Applicant Response: This is not directly applicable, as the proposed action is a citywide text amendment and map adoption not a site-specific zoning or land use change. The amendment does not modify underlying zoning designations or land use classifications.

Staff Response: This amendment does not impact zoning.

FINDING: Meets the standard.

(h) In cases where a conflict arises between the General Plan Map and General Plan

Policies, precedence shall be given to the Plan Policies.

Applicant Response: No conflict.

Staff Response: No conflict.

FINDING: Meets the standard.

APPLICABLE ZONING CODES

The new text would entirely replace the old in Provo City Code 15.05.180 Floodplain Management and Development Standards.

POSSIBLE MOTIONS AND FINDINGS

The Planning Commission may make any of the following findings:

1. **Recommend Approval:** The proposal is consistent with the General Plan.
“I make a motion that we forward a recommendation of approval for the proposed Floodplain Management and Development Standards to the City Council.”
2. **Recommend Denial:** The proposal is not consistent with the General Plan.
“I make a motion that we forward a recommendation of denial for the proposed Floodplain Management and Development Standards to the City Council.”
3. **Continue:** New information presented at the public hearing or additional study needs to be done.
“I make a motion that we continue the proposed Floodplain Management and Development Standards to allow for further discussions.”

ATTACHMENTS

1. Attachment 1: Proposed New Text for 15.05.180 Floodplain Management and Development Standards

ATTACHMENT 1 – PROPOSED NEW TEXT FOR 15.05.180 **FLOODPLAIN MANAGEMENT AND DEVELOPMENT STANDARDS**

15.05.180

Floodplain Management and Development Standards.

(1) *Statutory Authorization.*

The Legislature of the State of Utah, under Utah Code. Ann. § 10-3-701, has delegated the responsibility to local governmental units to adopt regulations designed to minimize flood losses. Therefore, the Provo Municipal Council, Utah ordains as follows:

Provo City elects to comply with the requirements of the National Flood Insurance Act of 1968 (Title XIII of P.L. 90-488, as amended).

(2) *Findings of Fact.*

The Special Flood Hazard Areas (SFHA) of Provo, Utah, are subject to periodic inundation which may result in loss of life and property, health and safety hazards, disruption of commerce and governmental services, extraordinary public expenditures for flood protection and relief, and impairment of the tax base, all of which adversely affect public health, safety, and general welfare. These potential flood losses are caused by:

- (a) The cumulative effect of obstructions in floodplains that increase flood heights and velocities;
- (b) The occupancy of flood hazard areas by structures vulnerable to floods due to inadequate elevation or lack of protection from flood damages; and
- (c) Uses deemed unsuitable for floodplain areas or that do not account for the increased flood risk.

(3) *Statement of Purpose.*

The purpose of this ordinance is to promote the public health, safety, and general welfare of the community and to minimize public and private losses due to flood conditions in specific areas through provisions designed to:

- (a) Protect human life and health;
- (b) Minimize damage to public and private infrastructure, including utilities, streets, and bridges susceptible to flooding;
- (c) Minimize prolonged business interruptions caused by flooding;

- (d) Reduce public expenditures on flood control projects;
- (e) Reduce the need for rescue and relief efforts associated with flooding, which are generally undertaken at the expense of the public;
- (f) Protect and safeguard the welfare and safety of first responders during emergency responses;
- (g) Help maintain a stable tax base by ensuring the sound use and development of flood-prone areas to minimize future flood blight areas; and
- (h) Promote notification of potential buyers of properties that are in a SFHA.

(4) *Methods for Reducing Flood Losses.*

To accomplish the purposes outlined in the *Statement of Purpose*, this ordinance applies the following methods:

- (a) Restrict or prohibit land uses that are dangerous to health, safety, or property in times of flooding, or that cause excessive increases in flood heights or velocities;
- (b) Require that land uses vulnerable to floods, including facilities that serve such uses, be protected against flood damage at the time of initial construction;
- (c) Control the alteration of natural floodplains, stream channels, and natural protective barriers, which are involved in the accommodating floodwaters;
- (d) Control filling, grading, dredging, and other developments that may increase flood damage; and
- (e) Prevent or regulate the construction of flood barriers that will unnaturally divert floodwaters or may increase flood hazards to other lands.

(5) *Flood Study and Map.*

This ordinance applies to all current Special Flood Hazard Areas identified by FEMA in the Flood Insurance Rate Maps (FIRM), Flood Boundary-Floodway Maps (FBFM) and Digital Flood Insurance Rate Maps (DFIRM), including: (1) maps dated June 23, 2026, numbered 49049C0338G, 49049C0340G, 49049C0341G, 49049C0343G, 49049C0526G, 49049C0527G, 49049C0528G, 49049C0529G, 49049C0531G, 49049C0533G, and 49049C0534G; and (2) maps dated June 19, 2020, numbered 49049C0342F, 49049C0344F, and 49049C0532F. The Flood Insurance Study (FIS) and the Provo City Flood Insurance Rate Map (FIRM) with an effective date of June 23, 2026, prepared by FEMA, along with any amendments, is adopted by reference and is available on the City's website for public examination and use. These maps,

along with any subsequent revisions, are adopted by reference and declared to be an integral part of this ordinance.

Provo City's flood hazard information may vary from the official FEMA data/maps. In cases where the best available data is more restrictive, the City will use the more stringent flood hazard information in accordance with FEMA guidelines, as outlined in Floodplain Management Publication 480.

Where base flood elevation data has not been provided on the FIRM or in the FIS, the Floodplain Administrator may review and reasonably utilize base flood elevation and floodway data available from Federal, State, or other sources. This data will serve as criteria for ensuring that new construction, substantial improvements, or other development within the floodplain are administered in accordance with Subsection (11) of this Section, General Development Standards.

(6) *Definitions.*

For purposes of this Section, the following words and phrases have the meanings outlined below:

“Accessory Structure” is a structure that is on the same property as a principal structure, used for purposes incidental to the principal structure. It must be non-residential, of low value, and used solely for parking vehicles or storing tools, materials, or equipment. Human habitation is not permitted within an accessory structure.

“Addition” is any improvement that expands the enclosed footprint or increases the square footage of an existing structure. This includes lateral additions (to the side, front, or rear), vertical additions (on top), and enclosures (underneath).

“Areas of Shallow Flooding” means a designated zone on a community's Flood Insurance Rate Map (FIRM) with a one percent (1%) or greater annual chance of flooding to an average depth of one (1) to three (3) feet where there is no clearly defined channel, the flooding path is unpredictable, and velocity flow may be evident. Such flooding is characterized by ponding or sheet flow. These zones are represented on the FIRM as AO, AH, AR/AO, or AR/AH zones.

“Base flood” means a flood having a one percent (1%) chance of being equaled or exceeded in any given year, also known as the One-Percent-Annual-Chance Flood.

“Base Flood Elevation (BFE)” is the water surface elevation of the one-percent-annual-chance flood event. It is the height in relation to mean sea level expected to be reached by the waters of the base flood at pertinent points in the floodplains of coastal and riverine areas. It is also the elevation shown on the FIRM and found in the accompanying Flood Insurance Study (FIS) for Zones A, AE, AH, A1-A30, AR, V1-V30, or VE that indicates the water surface

elevation resulting from the flood that has a 1 percent (1%) chance of equaling or exceeding that level in any given year.

“Basement” means any area of the building having its floor subgrade (below ground level) on all sides. A walkout basement that does not require a step up to grade is not considered a basement.

“Best Available Data” means existing flood hazard information adopted by a community and reflected on an effective FIRM, FBFM, and/or within an FIS report; or draft or preliminary flood hazard information supplied by FEMA or from another source. Other sources may include, but are not limited to, the state, other federal agencies, or local studies, the more restrictive of which would be reasonably used by the community.

“Breakaway Wall” means a wall that is not part of the structural support of the building and is intended through its design and construction to collapse under specific lateral loading forces, without causing damage to the elevated portion of the building or supporting foundation system. Any walls below the lowest floor in a building in a V or VE Zone should give way under wind and water loads without causing collapse, displacement, or other damage to the elevated portion of the building or the supporting pilings or columns. Breakaway walls apply only to V or VE Zones.

“Building” A structure with 2 or more outside rigid walls and a fully secured roof, that is affixed to a permanent site.

“Conditional Letter of Map Revision (CLOMR)” is FEMA's comment on a proposed project that would, upon construction, affect the hydrologic and/or hydraulic characteristics of a flooding source and thus result in the modification of the existing regulatory floodway, the effective BFEs, and/or the SFHA. The letter does not revise an effective map; it indicates whether the project, if built as proposed, would be recognized by FEMA.

“Conditional Letter of Map Revision Based on Fill (CLOMR-F)” is FEMA's comment on a proposed structure or property that would, upon construction, result in a modification of the SFHA through the placement of fill outside the existing regulatory floodway. The letter does not revise an effective map; it indicates whether the project, if built as proposed, would be removed from the floodplain.

“Crawlspace” means an under-floor space that has its interior floor area (finished or not) no more than four (4) feet from the bottom floor joist of the next higher floor elevation, designed with proper openings that equalize hydrostatic pressures of floodwater, and is not used for habitation.

“Development” means any human-made change to improved or unimproved real estate, including, but not limited to, buildings or other structures, mining, dredging, filling, grading, paving, excavation, or drilling operations located within the Special Flood Hazard Area.

“Elevated Building” is a non-basement building built, in the case of a building in Zone A1-30, AE, A, A99, AR, AO, AH, B, C, X and D, to have the top of the elevated floor above the ground level by means of pilings, columns (post and piers), or shear walls parallel to the flow of the water and adequately anchored so as not to impair the structural integrity of the building during a flood of up to the magnitude of the base flood. In the case of a building in Zone A1-30, AE, A, A99, AR, AO, AH, B, C, X and D, an “elevated building” also includes a building elevated by means of fill or solid foundation perimeter walls with openings sufficient to facilitate the unimpeded movement of floodwaters.

“Enclosure” refers to an enclosed walled-in area below the lowest floor of an elevated building. Enclosures below the BFE may only be used for building access, vehicle parking, and storage.

“Erosion” means the process of the gradual wearing away of land masses by wind, water, or other natural agents.

“Existing Manufactured Home Park” means a manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including, at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed before the effective date of the floodplain management regulations adopted by a community.

“Expansion to an Existing Manufactured Home Park” means the preparation of additional sites by the construction of facilities for servicing the lots on which the manufacturing homes are to be affixed (including the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads).

“FEMA” means the Federal Emergency Management Agency.

“Fill” refers to the placement of materials, such as dirt, sand, or rock to elevate a structure, property, or portion of a property above the natural elevation of the site, regardless of where the material was obtained from. The common practice of removing unsuitable material and replacing it with engineered material is not considered fill if the elevations are returned to the existing conditions. Any fill placed or used prior to the area being mapped as a flood hazard area is not deemed as fill.

“Flood” or **“flooding”** means a general and temporary condition of partial or complete inundation of normally dry land areas from the overflow of inland or tidal waters and/or the unusual and rapid accumulation or runoff of surface waters from any source.

“Flood Boundary-Floodway Maps (FBFM)” means an official map of a community issued by FEMA, where the boundaries of the flood, mudflow and related erosion areas having special hazards have been designated. The FBFM is no longer produced but is an older version of a flood map and is based on approximate data.

“Flood Insurance Rate Map (FIRM)” means the official map of which the Federal Emergency Management Agency has delineated both the Special Flood Hazard Areas and the risk premium zones applicable to the community.

“Flood Insurance Study (FIS)” means the official report provided by the Federal Emergency Management Agency that compiles and presents flood risk data for specific water bodies within a community.

“Flood Opening” refers to an opening in the wall of an enclosed structure that allows floodwaters to automatically enter and exit the enclosure. Refer to FEMA Technical Bulletin 1.

“Floodplain” means the relatively flat area or lowlands adjoining a river, stream, watercourse, ocean, or lake which have been or may be covered by floodwater. For purposes of this Chapter, this is the area designated on the FIRM as Special Flood Hazard Areas.

“Floodplain Administrator” means the local official or other person designated by a community as responsible for administering the floodplain management ordinance.

“Floodplain Development Permit” is a community issued permit or document that is used for any development that occurs within an SFHA identified by FEMA or the community. It is used to address the proposed development to ensure compliance with the community’s ordinance.

“Floodplain Management” means the operation of an overall program of corrective and preventive measures for reducing flood damage, including but not limited to emergency preparedness plans, flood control works, mitigation plans, and floodplain management regulations.

“Floodproofing” means any combination of structural and non-structural additions, changes, or adjustments to structures that reduce or eliminate flood damage to real estate or improved real property, water and sanitary facilities, structures and their contents. Floodproofing can either be accomplished in the form of dry floodproofing in which the structure is watertight below the levels that need flood protection, or wet floodproofing in permanent or contingent measures applied to a structure that prevent or provide resistance to a structure that prevent or provide resistance to damage from flooding, while allowing floodwaters to enter the structure area.

“Flood Protection System” means those physical structural works for which funds have been authorized, appropriated, and expended and which have been constructed specifically to modify flooding in order to reduce the extent of the area within a community subject to an SFHA and to reduce the depths of associated flooding. Such a system typically includes hurricane tidal barriers, dams, reservoirs, levees or dikes. These specialized, flood modifying works are constructed in conformance with sound engineering standards. FEMA only accredits levees, both private and public, that have been certified by a professional engineer or firm in which the certification shows that the levee have met and continue to meet the minimum regulatory

standards cited in Title 44, Chapter 1, Section 65.10 of the Code of Federal Regulations (44 CFR 65.10).

“Floodway” means the channel of the river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without accumulatively increasing the water surface elevation more than one (1) foot.

“Freeboard” means a factor of safety usually expressed in feet above a flood level for purposes of flood plain management. Freeboard tends to compensate for the many unknown factors that could contribute to flood heights greater than the height calculated for a selected size flood and floodway conditions, such as wave action, bridge openings, and the hydrological effect of urbanization of the watershed.

“Functionally Dependent Use” means a development that cannot perform its intended purpose unless it is located or carried out in close proximity to water. The term includes docking facilities, port facilities that are necessary for the loading and unloading of cargo or passengers, and ship building and repair facilities. It does not include long-term storage or related manufacturing facilities.

“Highest Adjacent Grade (HAG)” means the highest natural elevation of the ground surface prior to construction next to the proposed walls of a structure. In AO Zones, the highest adjacent grade is utilized by comparing the lowest floor elevation to that of the highest adjacent grade and the depth of the AO Zone.

“Historic Structure” means any structure that is:

- (a) Listed individually in the National Register of Historic Places (a listing maintained by the Department of Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register;
- (b) Certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the Secretary to qualify as a registered historic district;
- (c) Individually listed on a state inventory of historic places in states with historic reservation programs that have been approved by the Secretary of the Interior; or
- (d) Individually listed on a local inventory of historic places in communities with historic preservation programs that have been certified either:
 - (i) By an approved state program as determined by the Secretary of the Interior, or
 - (ii) Directly by the Secretary of the Interior in states without approved programs.

“Letter of Map Revision (LOMR)” means FEMA's modification or revision to an entire or portion of the effective FIRM, or Flood Boundary and Floodway Map, or both. LOMRs are generally based on the implementation of physical measures that affect the hydrologic or hydraulic characteristics of a flooding source and thus result in the modification of the existing regulatory floodway, the effective BFEs, or the SFHA.

“Letter of Map Revision Based on Fill (LOMR-F)” means FEMA's amendment, by letter, to an effective FIRM where fill was brought in or used to elevate a property, portion of property or structure above the BFE.

“Levee” means a human-made structure usually an earthen embankment, designed and constructed in accordance with sound engineering practices to contain, control, or divert the flow of water so as to provide protection from temporary flooding.

“Lowest Adjacent Grade (LAG)” means the lowest natural elevation of the ground surface prior to construction next to the proposed walls of a structure. For an existing structure, it means the lowest point where the structure and ground touch, including but not limited to attached garages, decks, stairs, and basement windows.

“Lowest floor” means the lowest floor of the lowest enclosed area (including basement). An unfinished or flood resistant enclosure, usable solely for parking of vehicles, building access, or storage in an area other than a basement area, is not considered a building's lowest floor; provided, that such enclosure is built in accordance with enclosure requirements of this ordinance and 44 CFR Section 60.3.

“Manufactured Home” means a structure, transportable in one or more sections, which is built on a permanent chassis and is designed for use with or without a permanent foundation when attached to the required utilities. The term “manufactured home” does not include a recreational vehicle; however, a manufactured home may be used for both residential and non-residential use.

“Manufactured Home Park” means a parcel (or contiguous parcels) of land divided into two or more manufactured home lots for rent or sale.

“Map” means the FHBM or the FIRM for a community issued by FEMA.

“Mean Sea Level” means, for purposes of the NFIP, the National Geodetic Vertical Datum (NGVD) of 1929, North American Vertical Datum (NAVD) of 1988, or other datum, to which BFEs shown on a community's FIRM are referenced.

“New construction” means structures for which the start of construction commenced on or after the effective date of this Chapter.

“New Manufactured Home Park” means a manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed on or after the effective date of floodplain management regulations adopted by a community.

“No-Rise Certifications” are formal certifications signed and stamped by a professional engineer licensed to practice in the state, demonstrating through hydrologic and hydraulic analyses performed in accordance with standard engineering practice that a proposed development will not result in any increase (zero (0) feet) in flood levels within the community during the occurrence of a base flood event.

“One-Percent-Annual-Chance Flood” means a flood having a recurrence interval that has a one percent (1%) chance of being equaled or exceeded during any given year. Also known as the Base Flood.

“Recreational Vehicle” means a vehicle that is:

- (a) Built on a single chassis;
- (b) Four hundred (400) square feet or less when measured at the largest horizontal projection;
- (c) Designed to be self-propelled or permanently towable by a light duty truck; and
- (d) Designed primarily not for use as a permanent dwelling, but as temporary living quarters for recreational, camping, travel, or seasonal use.

“Riverine” means relating to, formed by, or resembling a river (including tributaries), stream, brook, creek, etc., which can be intermittent or perennial.

“Special Flood Hazard Area (SFHA)” is the land in the flood plain within a community subject to a one percent (1%) or greater chance of flooding in any given year. The area may be designated as Zones A, AO, AH, A1-30, AE, A99, AR, AR/A1-30, AR/AE, AR/AO, AR/AH, AR/A, or V1-30, VE, or V.

“Start of construction” includes substantial improvements and means the date the building permit was issued, provided the actual start of construction, repair, reconstruction, placement, or other improvement was within one hundred eighty (180) days of the permit date. The actual start means the first placement of permanent construction of a structure on a site, such as the pouring of slab or footings, the installation of piles, the construction of columns, or any work beyond the stage of excavation or the placement of a manufactured home on a foundation. Permanent construction does not include land preparation such as clearing, grading, and filling;

nor does it include excavation for a basement, footings, piers, or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory buildings such as garages or sheds not occupied as dwelling units or not as part of the main structure. For a substantial improvement, the actual start of construction means the first alteration of any wall, ceiling, floor, or other structural part of a building, whether or not that alteration affects the external dimensions of the building.

“Structure” means, for floodplain management purposes, a walled and roofed building, including a gas or liquid storage tank that is principally above ground, as well as a manufactured home. The term building or structure does not include open pavilions, bleachers, carports and similar structures that do not have at least two rigid walls and a roof.

“Substantial Damage” means damage of any origin sustained by a structure whereby the cost of restoring the structure to its pre-damaged condition would equal or exceed fifty percent (50%) of the market value of the structure before the damage occurred.

“Substantial Improvement” means any reconstruction, rehabilitation, addition, or other improvement of a structure, the cost of which equals or exceeds fifty percent (50%) of the market value of the structure before the “start of construction” of the improvement. This term includes structures which have incurred substantial damage, regardless of the actual repair work performed. The term “substantial improvement” does not include any alteration of a structure or facility listed on the National Register of Historic Places or a State Inventory of Historic Places.

“Variance” means a grant of relief by a community from the terms of a flood plain management regulation.

“Violation” means the failure of a structure or other development to be fully compliant with the community's flood plain management regulations. A structure or other development without the elevation certificate, other certifications, or other evidence of compliance required in Sections 44 CFR 60.3(b)(5), (c)(4), (c)(10), (d)(3), (e)(2), (e)(4), or (e)(5) is presumed to be in violation until such time as that documentation is provided.

“Water surface elevation” means the height, in relation to the North American Vertical Datum of 1988, (or other datum, where specified) of floods of various magnitudes and frequencies, such as the 1-percent-annual-chance flood event, in the floodplains of coastal or riverine areas.

“Watercourse” means the channel and banks of an identifiable water in a creek, brook, stream, river, ditch, or other similar feature.

(7) *Administration.*

The Public Services section of the Public Works Department is designated as the Floodplain Administrator responsible for administering and implementing the provisions of this ordinance as well as relevant sections of the NFIP Regulations and 44 CFR pertaining to floodplain management.

Duties and responsibilities of the Floodplain Administrator include, but are not limited to, the following:

- (a) Uphold the goals of the community and the NFIP's objectives to reduce risk when possible and increase the community's resistance to future disasters.
- (b) Maintain and make available for public inspection all records related to this ordinance, including the actual elevation of the lowest floor (including basement or crawlspace) of all new or substantially improved structures within the SFHA.
- (c) Maintain and make available for public inspection maps that identify and locate the boundaries of the SFHAs to which this ordinance applies, including, but not limited to, the FIRM.
- (d) Review development proposals to determine whether a proposed building site, including sites designed for the placement of manufactured homes, will be reasonably safe from flooding.
- (e) Review, approve, or deny all applications for development permits required by this ordinance.
- (f) Ensure that all necessary permits have been obtained from relevant federal, state, or local governmental agencies (including Section 404 of the Federal Water Pollution Control Act Amendments of 1972, 33 U.S.C. 1334, and the Endangered Species Act of 1973) where prior approval is required.
- (g) Ensure that the flood-carrying capacity within the altered or relocated portion of any watercourse is maintained.
- (h) Notify adjacent impacted communities and the State Coordinating Agency, which is the Utah Division of Emergency Management, prior to any alteration or relocation of a watercourse in riverine situations and submit evidence of such notification to FEMA.
- (i) Where interpretation is needed as to the exact location of the boundaries of the of Special Flood Hazard Areas (for example, where there appears to be a conflict between a mapped boundary and actual field conditions), the Floodplain Administrator is authorized to make the necessary interpretation.

(j) When BFE data has not been provided by FEMA, the Floodplain Administrator is required to obtain, review, and reasonably utilize any BFE data and floodway data available from a federal, state, or other source including data provided by the applicant, to administer the provisions of this ordinance.

(k) When a regulatory floodway has not been designated, no new construction, substantial improvements, or other development (including fill) are permitted within Zones AE and AH on the community's FIRM, unless it is demonstrated that the cumulative effect of the proposed development, when combined with all other existing and anticipated development, will not increase the water surface elevation of the base flood more than one (1) foot at any point.

(8) *Floodplain Development Permit.*

(a) A Floodplain Development Permit must be obtained before construction or development begins within the SFHA.

(b) Applications for a Floodplain Development Permit must be made on forms furnished by the Floodplain Administrator. These applications may include, but are not limited to, plans in duplicate drawn to scale showing the nature, location, dimensions, and elevations of the area in question; existing or proposed structures; fill; storage of materials; drainage facilities; and the location of the foregoing.

(c) Specifically, the following information is required:

(i) Location of the proposed development project in relation to SFHAs.

(ii) Elevation in relation to mean sea level, of the lowest floor (including basement) of all structures. Plans must show that the elevation of lowest floor (including basement) is at least one (1) foot above the BFE.

(iii) Description of the extent to which any watercourse will be altered or relocated as a result of the proposed development.

(d) Choose one of the following if the application would alter the course, elevations or delineations of floodplains based on riverine or overland flow:

(i) A CLOMR may be required at the discretion of the Floodplain Administrator. Upon approval by the Floodplain Administrator, the CLOMR must be submitted to FEMA. Approval by FEMA is required to obtain the Floodplain Development Permit. A LOMR must be obtained to complete the process.

(ii) A CLOMR-F may be required at the discretion of the Floodplain Administrator if fill is used to the site out of the SFHA. Upon approval by the Floodplain Administrator,

the CLOMR-F must be submitted to FEMA. Approval by FEMA is required to obtain the Floodplain Development Permit. A LOMR-F must be obtained to complete the process.

- (e) All applications for a Floodplain Development Permit must be approved by the Floodplain Administrator.
- (f) Applicants for a Floodplain Development Permit must pay the associated permit fee as indicated in the Consolidated Fee Schedule.
- (g) Copies of all Floodplain Development Permits and the associated documents are Provo City property and are kept as a permanent record.
- (h) Approval of a Floodplain Development Permit by the Floodplain Administrator is based on the provisions of this ordinance and the following relevant factors:
 - (i) The danger to life and property due to flooding or erosion damage.
 - (ii) The susceptibility of the proposed development and its contents to flood damage and the effect of such damage on the individual owner.
 - (iii) The risk that materials could be swept onto other lands, causing injury to others.
 - (iv) The compatibility of the proposed use with existing and anticipated development.
 - (v) The safety of access to the property in times of flood for ordinary and emergency vehicles.
 - (vi) The costs of providing governmental services during and after flood conditions including maintenance and repair of streets, bridges, and public utilities and facilities such as sewer, gas, electrical, and water systems.
 - (vii) The expected heights, velocity, duration, rate of rise, and sediment transport of the floodwaters, as well as the effects of wave action, if applicable, anticipated at the site.
 - (viii) The necessity to the development of a waterfront location, where applicable.
 - (ix) The availability of alternative locations, not subject to flooding or erosion damage, for the proposed use.
 - (x) The relationship of the proposed use to the comprehensive plan for that area.
- (i) The Board of Adjustment is responsible for hearing and rendering judgment on requests for variances from the requirements of this ordinance after a Floodplain Development

Permit has been denied. Additionally, the Appeal Board is authorized to hear and adjudicate appeals when it is alleged that there is an error in any requirement, decision, or determination made by the Floodplain Administrator in the enforcement or administration of this ordinance.

(i) Upon consideration of the factors noted above and the intent of this ordinance, the Board of Adjustment may attach such conditions to the granting of variances as it deems necessary to further the purpose and objectives of this ordinance.

(ii) Any person or persons aggrieved by the decision of the Board of Adjustment may appeal such decision in the District Court of competent jurisdiction.

(iii) The Floodplain Administrator must maintain a record of all actions involving an appeal and must report variances to FEMA and the State Coordinating Agency upon issuing a variance.

(iv) Variances may not be issued within any designated floodway if any increase in flood levels during the base flood discharge would result.

(v) Variances may be issued for the repair or rehabilitation of historic structures upon a determination that the proposed repair or rehabilitation will not preclude the structure's continued designation as a historic structure and the variance is the minimum necessary to preserve the historic character and design of the structure.

(j) Prerequisites for granting variances:

Variances may only be issued upon a determination that the variance is the minimum necessary, considering the flood hazard, to afford relief. Variances may only be issued upon:

(i) Showing a good and sufficient cause.

(ii) A determination that failure to grant the variance would result in exceptional hardship to the applicant.

(iii) A determination that the granting of a variance:

(A) will not result in increased flood heights, additional threats to public safety, or extraordinary public expense;

(B) will not create nuisances; cause fraud on or victimization of the public;

(C) will not conflict with existing local laws or ordinances;

(D) considers the need of ingress and egress during times of floods; and

(E) does not jeopardize first responders' health and welfare.

(k) Any applicant to whom a variance is granted is required to receive written notice stating that the structure is permitted to be built with the lowest floor elevation below the BFE. The notice will also inform the applicant that the cost of flood insurance needs to reflect the increased risk resulting from the reduced lowest floor elevation.

(l) Variances may be issued for new construction and substantial improvements and for other development necessary for the conduct of a functionally dependent use provided that:

(i) The criteria outlined in this section are met; and

(ii) The structure or other development is protected by methods that minimize flood damage during the base flood and create no additional threats to public safety.

(9) *Submittal Requirements for the Certificate of Occupancy.*

The following is required prior to the issuance of any certificate of occupancy for any structure in the SFHA:

(a) An approved Floodplain Development Permit from Provo City; and

(b) One of the following:

(i) A letter of map change (LOMC) approved by the Floodplain Administrator and FEMA to remove the structure from the SFHA; or

(ii) A LOMC that has been submitted to FEMA that has not yet been approved, but has had a previous conditional approval from FEMA (i.e. CLOMR and CLOMR-F), and a FEMA elevation certificate completed and signed by a registered professional engineer or land surveyor indicating the structure is above the base flood indicated in the LOMC submittal.

(10) *New Technical Data*

(a) The property owner or developer must notify FEMA by submittal of a LOMR or LOMR-F within 6 months of project completion when an applicant has obtained a CLOMR or LOMR-F from FEMA or when development has altered a watercourse, modified floodplain boundaries, or modified BFE.

(b) The property owner or developer is responsible for preparing technical data to support the CLOMR, CLOMR-F, LOMR, or LOMR-F application and paying any processing or application fees to FEMA. The property owner or developer is responsible for submitting the CLOMR and LOMR to FEMA and is required to provide all necessary data to FEMA if requested during the review process to ensure that the CLOMR or LOMR is issued.

(c) The Floodplain Administrator is not required to sign the Community Acknowledgement Form, which is part of the CLOMR/LOMR/CLOMR-F/LOMR-F application, until the applicant demonstrates that the project is going to meet or has met the requirements of this ordinance, all applicable state, federal, and local laws.

(11) *General Development Standards.*

In order for any final subdivision, condominium, or other record of survey plat to be approved, or for any Floodplain Development Permit to be issued, for property located within the SFHA all of the following requirements must be met:

- (a) All applicable development permits for the proposed construction or improvements must be obtained from Federal, State, or local governmental agencies from which prior approval is required.
- (b) Any encroachments such as fill, new construction, substantial improvements, and other development within the floodway that would result in any increase in flood levels during the occurrence of the base flood discharge must first obtain a CLOMR approved by the Floodplain Administrator and FEMA before construction begins.
- (c) All new construction or substantial improvements, including manufactured homes, must be designed (or modified) and adequately anchored to prevent flotation, collapse, or lateral movement of the structure resulting from hydrodynamic and hydrostatic loads, including the effects of buoyancy.
- (d) All new construction or substantial improvements must be constructed by methods and practices that minimize flood damage. The construction materials used must be resistant to flood damage.
- (e) All proposals for new construction, redevelopment, or for substantial improvements to existing structures within the SFHA, including manufactured homes, must be designed (or modified) to meet the storm drainage system performance standards of Provo City Code Section [18.03.020](#).
- (f) All public utilities including sewer, gas, electricity, and water systems must be located and constructed to minimize or eliminate flood damage. All proposals for construction or improvements (including replacements), within the SFHA, must be provided with water supply systems or sanitary sewage systems that are designed to minimize or eliminate infiltration of floodwaters into the system and discharges from the system into floodwater. On-site waste disposal systems must be located so as to avoid impairment of them, or contamination from them, during flooding.

(g) Any structure, earth fill, or parking lot, in connection with any development, or any surface obstruction to water flow, must be located at least one hundred (100) feet from the high point of the bank of Provo River, except for:

- (i) Bridges;
- (ii) Flood Control Devices;
- (iii) Public Restrooms; and
- (iv) Recreational Facilities.

(h) All new construction and substantial improvements must be constructed with electrical, heating, ventilation, plumbing, and air conditioning equipment and other service facilities that are designed and/or located so as to prevent water from entering or accumulating within the components during conditions of flooding.

(i) Any structural storage facilities for chemicals, explosives, buoyant materials, flammable liquids, or other toxic materials that could be hazardous to public health, safety, and welfare must be located one (1) foot above the BFE.

(j) All new public surface improvements (roads, curb and gutter, sidewalk, manhole rims, etc.) must be constructed one foot above the BFE.

(k) Lowest floors (including basements) of all structures in the SFHA must be a minimum of one (1) foot above the BFE. A registered professional engineer, architect, or land surveyor shall submit certified elevations to the Floodplain Administrator that the standards of this ordinance are satisfied.

(l) The minimum elevation of parking lots must be no lower than six (6) inches below the BFE.

(12) *Substantial Improvement.*

If the structure has sustained substantial damage any repairs are considered substantial improvements regardless of the actual repair work performed. The term does not, however, include either:

- (a) Any project for improvement of a building required to correct existing health, sanitary, or safety code violations identified by the building official, and that are the minimum necessary to ensure safe living conditions; or
- (b) Any alteration of a historic structure, provided that the alteration will not preclude the structure's continued designation as a historic structure.

(12) *Substantial Damage.*

When a structure or building has been determined as substantially damaged, any work or repair on said structure or building will be considered as substantial improvement and will be required to meet the development requirements set forth within this ordinance for substantial improvement.

(13) *Substantial Improvement and Substantial Damage Determination.*

For building permit applications within the SFHA related to improvements of buildings and structures, including alterations, relocations, enlargements, replacement, repairs, changes in occupancy, additions, rehabilitations, renovations, and any other form of work on such buildings and structures, the Floodplain Administrator and staff, must:

- (a) Require the applicant to obtain an appraisal of the market value prepared by a qualified independent appraiser of the building or structure, not including the land, before the start of construction of the proposed work. In the cases of repairs, the market value of the buildings or structures must be the market value before the damage occurred and before any repairs are made.
- (b) Compare the cost to perform the improvements, the cost to repair a damaged building to its pre-damaged condition, or the combined costs of improvements and repairs, if applicable, to the market value of the buildings or structures.
- (c) Determine and document whether the proposed work constitutes substantial improvement. This determination requires evaluation of any permits issued for improvements and repairs as specified in the first paragraph of this section, even if multiple permits are issued. Therefore, the determination of the cost of the improvement should consider all costs of all phases of the work before issuance of the first permit.
- (d) Notify the applicant when it is determined that the work constitutes substantial improvement or repair of substantial damage.

(14) *Specific Development Standards for Floodplain Development.*

- (a) Subdivision proposals, including the placement of manufactured home parks, within the SFHA must:
 - (i) Meet the Floodplain Development Permit requirements of this ordinance to minimize flood damage;
 - (ii) Include the mapped flood hazard zones from the effective FIRM;
 - (iii) Have adequate drainage provided to reduce exposure to flood hazards; and

(iv) Ensure that public utilities and facilities such as sewer, gas, electrical, and water systems are located and constructed to minimize or eliminate flood damage.

(b) Where BFE data does not already exist for subdivision proposals and other proposed developments, including the placement of manufactured home parks, within the SFHA, it must be generated if they either exceed fifty (50) lots or five (5) acres.

(15) *Standards for Areas of Shallow Flooding (AO/AH Zones)*

One type of SFHA includes areas designated as shallow flooding. Such flooding is characterized by ponding or sheet flow. The Provo City standard is one (1) foot freeboard, meaning that the following requirements apply:

(a) All new construction and substantial improvements of all structures must have the lowest floor elevated one (1) foot above the BFE defined as the ponding depth specified, in feet, on the FIRM compared to the HAG. If no depth is specified, the BFE is assumed to be two (2) feet above the HAG. The lowest floor must then be elevated an additional one (1) foot above the BFE for freeboard.

(b) A registered professional engineer or architect must submit a certification to the Floodplain Administrator confirming that the standards of this Subsection are met.

(c) Zones AH or AO require adequate drainage paths around structures on slopes to direct floodwaters away from the proposed structures.

(16) *Standards for Velocity Zones in Coastal Hazard Areas (V1-30/V/VE Zones)*

One uncommon type of SFHA in Provo City includes high-risk coastal velocity or wave action zones that include an additional hazard from storm waves. All new construction and substantial improvements of all structures in these zones must have the approval of the City Engineer. The Provo City standard of one (1) foot freeboard, meaning that the following requirements will apply:

(a) All new construction and substantial improvements of all structures must be elevated and secured to anchored pilings or columns and have the lowest horizontal structural member of the lowest floor elevated one (1) foot above the BFE.

(b) A registered professional engineer or architect must submit a certification to the Floodplain Administrator confirming that the standards of this Subsection are met.

(c) The space below the lowest floor must either be free of obstruction or constructed with breakaway walls. Any enclosed space shall be used solely for parking, building access, or storage.

- (d) All new construction must be landward of the mean high tide.
- (e) No fill for structural support shall be permitted within these zones.
- (f) No altering of sand dunes and mangrove stands shall be permitted.

(17) Standards for Nonresidential Construction

New construction and substantial improvements of any commercial, industrial, or other nonresidential structure shall either have the lowest floor (including basement) elevated to one (1) foot above the BFE, or, together with attendant utility and sanitary facilities, be designed so that below the BFE the structure is watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy. A registered professional engineer or architect shall develop and/or review structural design, specifications, and plans for the construction, and shall certify that the design and methods of construction are in accordance with accepted standards of practice as outlined in this subsection. A record of such certification that includes the specific elevation (in relation to mean sea level) to which such structures are floodproofed shall be maintained by the Floodplain Administrator. If the use or occupancy of the building changes in the future to residential, then the dry floodproofing of the structure cannot be used when determining compliance of the structure to the residential construction of this ordinance. As such, the building will not be grandfathered into compliance and will be required to be brought into compliance with the residential construction requirements of this ordinance.

At the discretion of the Floodplain Administrator loading docks may be designed below the BFE provided they are floodproofed to the elevation of the BFE.

(18) Enclosures

New construction and substantial improvements with fully enclosed areas below the lowest floor that are intended solely for parking of vehicles, building access, or storage (excluding basements), and subject to flooding, must be designed to automatically equalize hydrostatic flood forces on exterior walls by allowing the entry and exit of floodwaters. Designs to meet this requirement must either be certified by a registered professional engineer or architect, or meet or exceed the following minimum criteria:

- (a) A minimum of two openings must be provided, with a total net area of at least one (1) square inch for every square foot of enclosed area subject to flooding.
- (b) The bottom of all openings may not be higher than one (1) foot above grade.
- (c) Openings may be equipped with screens, louvers, valves, or other coverings or devices if they permit the automatic entry and exit of floodwaters.

The development and construction of the structure must conform to the provisions in FEMA/Federal Insurance Administration (FIA) Technical Bulletins 1 and 2. Certification and documentation from a licensed professional engineer or architect are required if the structure's lowest floor is built below the BFE.

(19) *Crawlspace*

New construction and substantial improvements built on a crawlspace or sub-grade (below grade) crawlspace may be permitted if the development is designed to meet or exceed the standards found in FEMA's Technical Bulletins 1, 2, and 11, including but not limited to the following:

- (a) The structure must be affixed to a permanent foundation, designed, and adequately anchored to resist flotation, collapse, and lateral movement resulting from hydrodynamic and hydrostatic loads, including buoyancy effects. Because of hydrodynamic loads, crawlspace construction is not allowed in areas with flood velocities greater than five (5) feet per second unless the design is reviewed by a qualified design professional, such as a registered architect or professional engineer.
- (b) As the crawlspace is an enclosed area below the BFE, it must have openings that equalize hydrostatic pressures by allowing the automatic entry and exit of floodwaters. The bottom of each flood vent opening may not be more than one (1) foot above the LAG.
- (c) The crawlspace enclosure must have proper openings to equalize hydrostatic pressure by allowing automatic entry and exit of floodwaters. A minimum of one (1) square inch of flood opening is required per one (1) square foot of the enclosed area subject to flooding.
- (d) Portions of the building below the BFE must be constructed with materials resistant to flood damage. This includes the foundation walls of the crawlspace and any joists, insulation, piers, or other materials extending below the BFE. Ductwork must either be placed above the BFE or sealed from floodwaters.
- (e) Any building utility systems within the crawlspace must be elevated above the BFE or designed to prevent floodwaters from entering or accumulating within the system components during flood conditions.
- (f) The interior grade of a crawlspace below the BFE may not be more than 2 feet below the LAG.
- (g) The height of the below-grade crawlspace, measured from the lowest interior grade of the crawlspace floor to the bottom of the floor joist of the next higher floor, cannot exceed four (4) feet at any point.

(h) There must be an adequate drainage system to remove floodwaters from the interior area of the crawlspace. The enclosed area must be able to drain within a reasonable time after a flood event.

(20) *Manufactured Homes*

(a) All manufactured homes placed within Zone A on Provo City's FHBM or FIRM must be installed using methods and practices that minimize flood damage. Manufactured homes must be elevated and anchored to resist flotation, collapse, or lateral movement. Acceptable anchoring methods include, but are not limited to, over-the-top or frame ties to ground anchors. This requirement is in addition to applicable State anchoring requirements for resisting wind forces.

(b) Manufactured homes placed, or substantially improved, within Zones A1-30, AH, AE, V, VE, and V1-30 on Provo City's FIRM must meet the conditions in Subsection (c) if they are:

- (i) Outside of a manufactured home park;
- (ii) In a new manufactured home park;
- (iii) In an expansion to an existing manufactured home park; or
- (iv) In an existing manufactured home park where a manufactured home has incurred substantial damage as a result of a flood.

(c) Manufactured homes described in Subsection (b) must be elevated on a permanent foundation such that the lowest floor is at least one (1) foot above the BFE and must be securely anchored to an adequately anchored foundation system to resist flotation, collapse, and lateral movement.

(d) All manufactured homes located within Zones A1-30, AH, AO, AE, V, VE, and V1-30 and not described in subsection (b), must be either:

- (i) Elevated so that the lowest floor is at least one (1) foot above the BFE; or
- (ii) If no BFE is specified on the FIRM, the chassis must be supported by reinforced piers that are securely anchored and at least 36 inches above the HAG.

(21) *Recreational Vehicles*

In all Special Flood Hazard Areas, Recreational Vehicles must either:

- (a) Be on the site for fewer than 180 consecutive days;

(b) Be fully licensed and ready for highway use, on its wheels or jacking system, attached to the site only by quick disconnect type utilities and security devices, and have no permanently attached structures or additions; or

(c) Meet all the requirements for a Floodplain Development Permit and meet the anchoring and elevation requirements for manufactured homes as specified in this ordinance.

(22) *Floodways.*

Floodways located within SFHAs are extremely hazardous areas due to the velocity of floodwaters that carry debris, potential projectiles, and erosion potential. Therefore, the following requirements must be met with regard to floodways:

(a) Designate a regulatory floodway that will not increase the base flood elevation more than 1 foot.

(b) Encroachments, including fill, new construction, substantial improvements and other development within adopted regulatory floodways are prohibited unless hydrologic and hydraulic analyses demonstrate that the proposed encroachment will not increase flood levels and a registered professional engineer signs and submits a No-Rise Certificate. Exceptions require a CLOMR and LOMR as outlined in this ordinance.

(c) All new construction and substantial improvements must comply with all applicable provisions of this ordinance.

(23) *Noncompliance.*

(a) Enforcement Authority. The Floodplain Administrator, or the Floodplain Administrator's designee, shall have the authority to issue notices of violation and stop work orders and to recoup any costs incurred to correct a violation of this ordinance.

(b) Notice of Violation. Whenever the Floodplain Administrator or the Floodplain Administrator's designee finds that a person has violated any of the provisions of this ordinance, the Floodplain Administrator or the Floodplain Administrator's designee may issue a written notice of violation. Such notice shall comply with the provisions of Section 17.030.020, Provo City Code

(c) Stop Work Order. Where there is work in progress that causes or constitutes a violation of any provision of this ordinance, the Floodplain Administrator or the Floodplain Administrator's designee is authorized to issue a stop work order to prevent further or continuing violations. All persons to whom the stop work order is directed, or who are involved, in any way, with the work described in the stop work order shall fully comply therewith. In situations which may be deemed a risk to the public health or safety, the

Floodplain Administrator or the Floodplain Administrator's designee may also undertake or cause to be undertaken any necessary or advisable protective measures to correct the violation, the cost of which shall be the responsibility of the owner of the property upon which the work is being done and any person carrying out or participating in the work. Such costs shall be a lien upon the property. In cases where the violation is associated with work permitted by the City and a bond was required, the costs may be applied to the bond in lieu of a lien upon the property, at the discretion of the City. In cases where the costs exceed available bond monies, the responsible party shall not be granted new permits by the City until the costs have been repaid to the City in full.

(d) Penalties. Continuing any work after receiving a stop work order, except as required to remove a violation or unsafe condition, is unlawful and is punishable as a Class B misdemeanor.

If, as the result of the violation of any provision of this ordinance, the City, or any other party, suffers damages and is required to make repairs and/or replace any materials, the cost of such repair, disposal, and/or replacement shall be borne by the violating party and shall be in addition to any criminal or civil fines and/or penalties. In cases where the violation is associated with work permitted by the City and a bond was required, the costs may be applied to the bond in lieu of a lien upon the property, at the discretion of the City. In cases where the costs exceed available bond monies, the responsible party shall not be granted new permits by the City until the costs have been repaid to the City in full.

(e) Administrative Hearing. A person or entity served a notice of violation of any of the provisions of this ordinance shall have the right to an administrative hearing. A request for such hearing shall be in writing and shall be filed, with the Public Works Director or the Director's designee within ten (10) days from the date of service of the notice. Failure to request an administrative hearing shall constitute a waiver to an administrative hearing and a waiver of the right to appeal. Administrative hearings shall adhere to the provisions of Chapter [17.02](#), Provo City Code.

(24) *Warning and Disclaimer of Liability.*

(a) The flood protection measures outlined in this Chapter are deemed reasonable for regulatory purposes and are grounded on engineering and scientific methodologies. It is important to acknowledge that larger floods may occur, and flood heights may be increased by human or natural causes, such as ice jams and bridge openings restricted by debris. This Chapter does not imply that areas outside the floodplain will be free from flooding or flood damages. Provo City and its officials are not liable for any flood damages resulting from adherence to this Chapter or any lawful administrative decisions made in accordance with it.

- (b) This ordinance is not intended to repeal, abrogate, or impair any existing easements, covenants, or deed restrictions. However, where this ordinance and another ordinance, easement, covenant, or deed restriction conflict or overlap, whichever imposes the more stringent restrictions shall prevail.
- (c) If any section, provision, or portion of this ordinance is adjudged unconstitutional or invalid by a court, the remainder of the ordinance shall not be affected.

ITEM 2 David Bragonje requests Concept Plan approval for a 46-unit condominium development in a proposed PRO-A10 (Arbors on the Avenue) Zone, located at 5568 N Canyon Rd. North Timpview Neighborhood. Aaron Ardmore (801) 852-6404 aardmore@provo.gov PLPPA20260077

APPLICANT:	David Bragonje
PROPERTY OWNER:	Cirque Condos LLC (David Bragonje)
PARCEL ID:	20:014:0110; 20:014:0109
ACREAGE:	5.9 acres
CURRENT LEGAL USE:	Vacant
GENERAL PLAN DESIGNATION:	Residential
CURRENT ZONE:	MDR (Medium Density Residential)
PROPOSED ZONE:	PRO-A10 (Arbors on the Avenue)
APPLICATION TYPE:	Administrative Decision – conceptual approval, applicant will need to bring Project Plan back to the Planning Commission if zone change is approved.

PROPERTY HISTORY

The applicant acquired this property around 2023 and brought forward a rezone request for a PRO-A10 Zone with a 66-unit condo concept in April 2024. That request was denied primarily due to sewer infrastructure concerns and a neighborhood plan that was being created at the time. Mr. Bragonje then returned with a request for the MDR Zone and a 16-unit townhome development, which was approved with a development agreement in January 2025.

As Public Works continued to study sewer infrastructure for an updated master plan it was found that there is the ability to provide infrastructure for more than the sixteen units that had been approved. With infrastructure no longer a concern and with the Northeast Neighborhood Plan being complete, Mr. Bragonje felt like he has what he needed to go back to a larger condo project on the site.

NEIGHBORHOOD FEEDBACK

The different iterations of this project have been discussed at multiple neighborhood district meetings, with the latest 46-unit condo concept being discussed at the April 1 North District meeting. Minutes of this last meeting are attached to this report.

PROJECT SUMMARY

David Bragonje is requesting concept plan approval for a 46-unit condo development in a proposed PRO-A10 Zone at approximately 5568 N Canyon Road. The concept plan is tied to the rezone request and will be memorialized in a Development Agreement with that application.

The proposal shows 46 condos spread across four levels with underground and surface level parking. Access would come from Indian Trailhead Road and would be designed to incorporate future road realignment of Canyon Road. All units will be for sale and are shown with two and three bedrooms and include common amenity spaces on floor one.

The property around the site is vacant, open land to the north and east in the Agricultural (A1) and Open Space, Preservation, and Recreation (OSPR) Zones; and would remain open with the proposal. To the southeast of the project area is a Provo Power station and the Indian Trail trailhead and parking lot. Further south, within 500 feet, there are four single-family homes on in the A1 Zone, with some agricultural uses. Across University Avenue, to the west, is a commercial center in the General Commercial (CG) Zone, and future office development in the Professional Office (PO) Zone.

STAFF ANALYSIS

Proposed Use: Condominiums

Finding: Proposed use is a permitted use in the proposed PRO-A10 zone.

Lot Standards

Required: minimum area: 2 acres; minimum width: 160 ft.; minimum depth: 60 ft.; minimum street frontage: 160 ft.

Proposed: area: 5.9 acres; width: 825 ft.; depth: 200-470 ft.; frontage: 825 ft. on Canyon Rd/University Ave and 218 ft. on Indian Trailhead Road.

Finding: Complies

Minimum Finished Floor Area

Required: 1,100 square feet for any dwelling unit.

Proposed: units range from 1,185-2,000 square feet.

Finding: Complies

Maximum Residential Density:

Allowed: 24 units per acre

Proposed: 7.79 units per acre

Finding: Complies

Setback Requirements

Required: front yard: 15 ft. minimum; side yard: 10 ft. minimum; rear yard: 20 ft.

Proposed: front yard: 78 ft.; side yards: 113 ft. and 452 ft.; rear yard: 145 ft.

Finding: Complies

Building Height and Distance

Standard: maximum height: 4 stories and 60 ft.; minimum distance between buildings: 15 ft.

Proposed: height: 4 stories, 52 ft; distance between buildings: N/A

Finding: Complies

Permissible Site Coverage

Standard: maximum 30%.

Proposed: 8% (.5-acre building footprint/5.9-acre site).

Finding: Complies

Parking and Access

Required: 2.25 spaces per unit (104 total)

Proposed: 104 total spaces.

Finding: Complies

APPLICABLE ZONING CODES

Provo City Code 14.50(10): [https://provo.municipal.codes/Code/14.50\(10\)](https://provo.municipal.codes/Code/14.50(10))

POSSIBLE MOTIONS AND FINDINGS

The Planning Commission may make any of the following findings:

1. **Approve:** The proposal is consistent with city code. *Make a motion that the Planning Commission approves the proposed concept for a 46-unit*

- condominium development at 5568 N Canyon Rd, subject to approval of a zone map amendment to the PRO-A10 Zone. (state findings/reasons).*
2. **Deny:** The proposal is not consistent with city code. *Make a motion that the Planning Commission denies the proposed concept for a 46-unit condominium development at 5568 N Canyon Rd. (state findings/reasons).*
 3. **Continue:** New information presented at the public hearing or additional study needs to be done. *Make a motion that the Planning Commission continues the proposed concept for a 46-unit condominium development at 5568 N Canyon Rd. (state findings/reasons).*

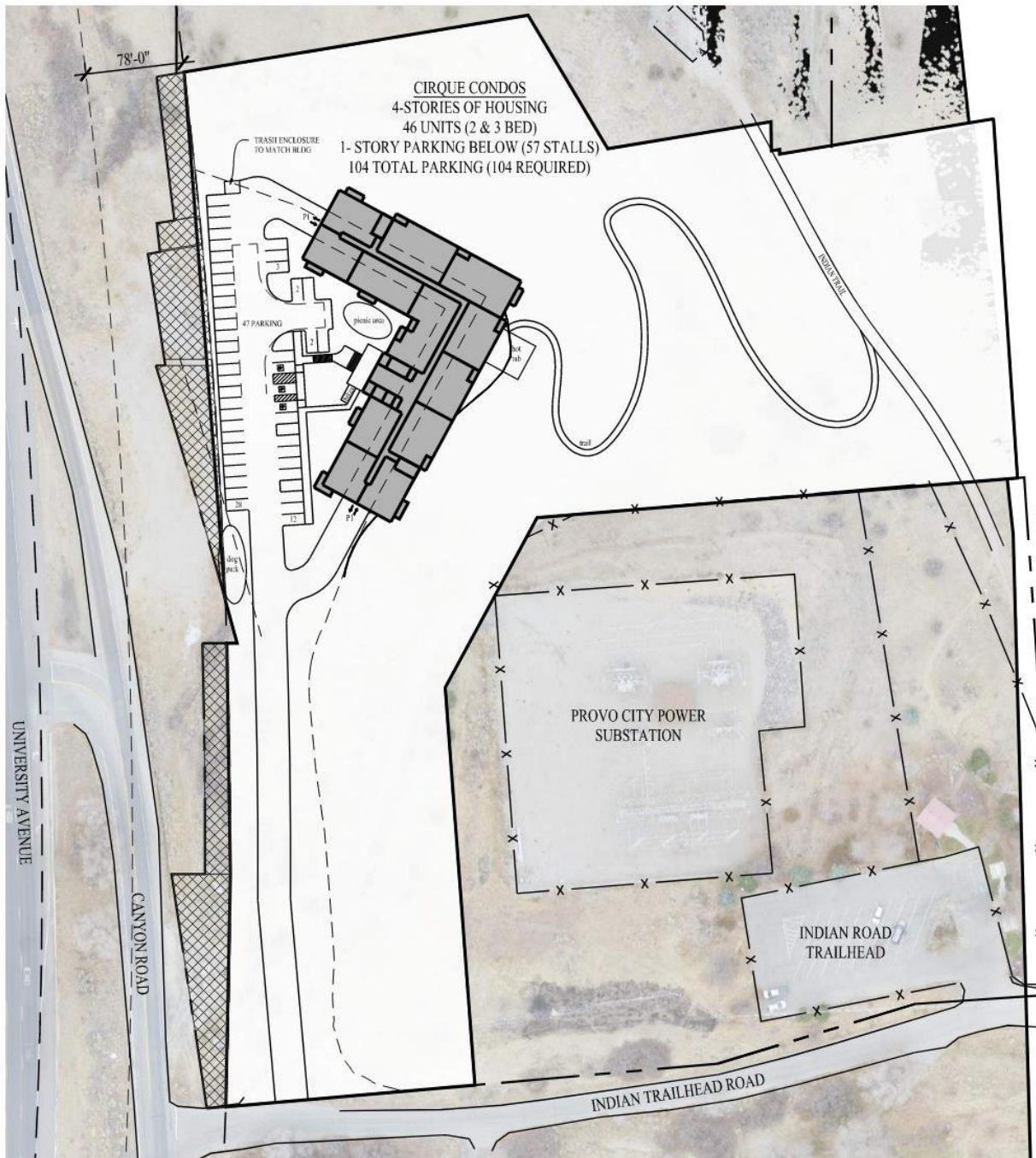
ATTACHMENTS

1. Area Map
2. Site Plan
3. Floor Plans
4. Elevations
5. April 1, 2026, Neighborhood Meeting Minutes

ATTACHMENT 1 – AREA MAP OF 5568 N CANYON ROAD



ATTACHMENT 2 – SITE PLAN



CONCEPTUAL SITE PLAN

SCALE: 1" = 100'-0"



ORDER
ARCHITECTURE

CIRQUE CONDOS

5600 N. CANYON ROAD
PROVO, UTAH 84604

ISS. DATE
04.03.2026

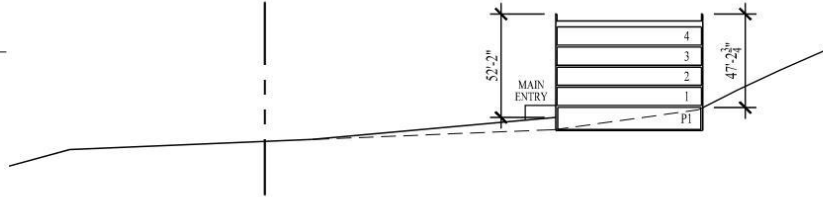
ATTACHMENT 3 – FLOOR PLANS

CIRQUE CONDOS

(38) 3-BEDROOM UNITS	x 2.25 STALL = 85.5
(8) 2-BEDROOM UNITS (1,100 SF MIN.)	x 2.25 STALL = 18
46 UNITS TOTAL	REQ. STALLS = 104

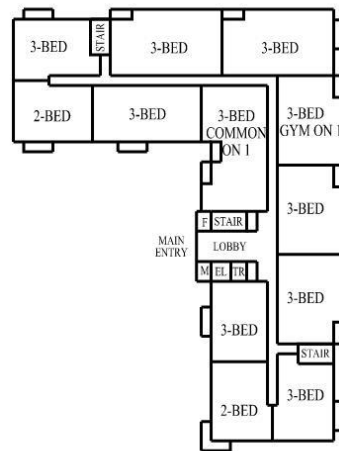
AMENITIES:

- TRASH CHUTE (TR)
- ELEVATOR (EL)
- MAIL ROOM (M)
- BALCONY
- STORAGE UNITS
- GARAGE PARKING
- BIKE PARKING/ BIKE HOOKS IN UNITS (72 SPACES)



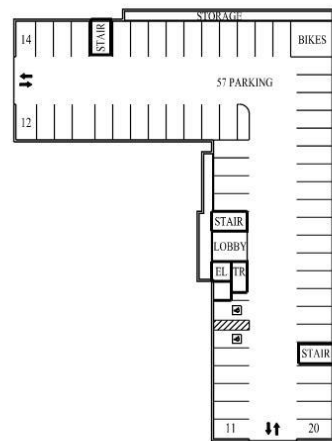
SITE SECTION

SCALE: 1" = 60'-0"



LEVELS 1, 2, 3 & 4 FLOOR PLAN

SCALE: 1" = 60'-0"



PARKING LEVEL PLAN - P1

SCALE: 1" = 60'-0"



ORDER
ARCHITECTURE

CIRQUE CONDOS
5600 N. CANYON ROAD
PROVO, UTAH 84604

ISS. DATE
04.03.2026

ATTACHMENT 4 – ELEVATIONS





ATTACHMENT 5 – APRIL 1, 2026, NEIGHBORHOOD MEETING **MINUTES**

Update on a proposed zone change from MDR (Medium Density Residential) to PRO-A10 (Arbors on the Avenue) and a request to amend the Development Agreement for a 46-unit condo project at 5568 North Canyon Road in the North Timpview Neighborhood

Planning Supervisor Aaron Ardmore provided an update on the 5055 North Canyon rezone project, formerly a gravel pit location. The property owner previously received approval for Medium Density Residential zoning with a development agreement limiting the project to 16 townhome units due to sewer infrastructure limitations.

Public Works has since worked with consultants and property owners to find solutions for sewer infrastructure gaps, prompting the current rezone request. The applicant is now proposing to change from MDR to PRO (Provo Ordinance) zone, specifically matching the zoning used for Arbors on the Avenue development further down Canyon Road. The density would remain consistent with the medium density residential calculation that was approved in the neighborhood standards plan.

The proposal includes 46 owner-occupied condo units with conceptual elevations showing how buildings would be situated on the sloped site. The project includes underground parking and surface parking, providing 2.25 parking spaces per unit. Units would be 2 and 3 bedrooms.

Questions were raised about structural safety given the hillside location. Ardmore assured that multiple levels of government regulation would ensure safety standards are met. The project would also require amendments to the existing development agreement, specifically updating the site plan that currently limits development to 16 units.

Current zoning (MDR) would technically allow 30 units per acre at 45 feet height, while the PRO-A10 zone allows 24 units per acre at 60 feet height. The developer is requesting fewer units than currently entitled but with different building parameters.

An opinion poll was conducted with three options:

- Favoring the project as proposed with no development agreement restrictions: **0**
- Favoring the project with a development agreement limiting it to 46 units: **10**
- Maintaining current approval (MDR with development agreement for 16 units): **13**

-
- *ITEM 3** David Bragonje requests a Zone Map Amendment from the MDR (Medium Density Residential) Zone to the PRO-A10 (Arbors on the Avenue) Zone, along with amendments to the Development Agreement, in order to develop a 46-unit condominium project, located at 5568 N Canyon Road. North Timpview Neighborhood. Aaron Ardmore (801) 852-6404 aardmore@provo.gov PLRZ20260076
-

APPLICANT:	David Bragonje
PROPERTY OWNER:	Cirque Condos LLC (David Bragonje)
PARCEL ID:	20:014:0110; 20:014:0109
ACREAGE:	5.9 acres
CURRENT LEGAL USE:	Vacant
GENERAL PLAN DESIGNATION:	Residential
CURRENT ZONE:	MDR (Medium Density Residential)
APPLICATION TYPE:	Legislative Decision – Planning Commission will make a recommendation to the City Council.

NEIGHBORHOOD FEEDBACK

The different iterations of this project have been discussed at multiple neighborhood district meetings, with the latest 46-unit condo concept being discussed at the April 1 North District meeting. Minutes of this last meeting are attached to this report.

PROJECT SUMMARY

David Bragonje is requesting a zone map amendment from the MDR Zone to the PRO-A10 Zone in order to revise the development plans for property at 5568 N Canyon Road. The MDR Zone that was approved by the City Council in 2025 was limited to a 16-unit townhome development by a development agreement. In order to move forward with a plan for 46 condominium units he has requested the existing PRO Zone used for the Arbors on the Avenue projects (5072 N-5282 N University Ave).

A concept plan has been submitted to show compliance with the proposed zone, details of which can be found in that staff report (5.13.26 Planning Commission agenda, item #2). That concept plan would be tied to a new development agreement to replace the existing one recorded on the property.

The surrounding zoning includes the Agricultural (A1) and Open Space, Preservation, and Recreation (OSPR) Zones; and would remain open with the proposal. To the southeast of the project area is a Provo Power station and the Indian Trail trailhead and parking lot. Further south, within 500 feet, there are four single-family homes on in the

A1 Zone, with some agricultural uses. Across University Avenue, to the west, is a commercial center in the General Commercial (CG) Zone, and future office development in the Professional Office (PO) Zone.

STAFF ANALYSIS

Before recommending an amendment, the Commission must find that the amendment serves the public interest and aligns with the General Plan, based on consideration of the following:

(a) Public purpose for the amendment in question;

Applicant Response: “Current status quo of the property is a blight in the city and a zone change will facilitate development, thus improving the aesthetics of this area” and “development of this property will facilitate improvements to city infrastructure.”

Staff Response: Development of this parcel would be an improvement to an important gateway to the city and bring needed services to the area.

FINDING: Meets standard.

(b) Confirmation that the public purpose is best served by the amendment in question;

Applicant Response: The current approved development is difficult to make feasible without very high selling prices, the proposed zone would allow a more affordable option and provide more residential units.

Staff Response: This zone map amendment seems to be necessary to make development happen.

FINDING: Meets standard.

(c) Compatibility of the proposed amendment with General Plan policies, goals, and objectives;

Applicant Response: The proposed amendment meets the goals to provide more for-sale housing in the city and aligns with the neighborhood plan.

Staff Response: The future land use map of the Northeast Neighborhood plan better aligns with this 46-unit proposal than the existing 16-unit plan. The proposed amendment aligns with goals in chapters 1 and 2 of the General Plan to “allow for different types of housing in neighborhoods” and to “increase the number of housing units of all types across the whole of Provo in appropriate and balanced ways.”

FINDING: Meets standard.

(d) Consistency of the proposed amendment with the General Plan’s “timing and sequencing” provisions on changes of use, insofar as they are articulated;

Applicant Response: “Development of the property will facilitate improvements to city infrastructure.”

Staff Response: The timing and sequencing of this request is timely as more development is being proposed in this area of the city, and allowing this project to move forward will help bring those services closer to those proposed developments.

FINDING: Meets standard.

(e) Potential of the proposed amendment to hinder or obstruct attainment of the General Plan’s articulated policies;

Applicant Response: No response.

Staff Response: Staff do not believe that any policies of the General Plan would be obstructed by the passing of this proposed amendment, as noted above, it meets the housing goals of the General Plan and the land use of the Northeast Neighborhood Plan.

FINDING: Meets standard.

(f) Adverse impacts on adjacent land owners; and

Applicant Response: No response.

Staff Response: Adverse impacts associated with this rezone may be a minimal increase in traffic on surrounding road networks, but the positive impacts to adjacent owners of improving a blighted area and improving public infrastructure and road networks should outweigh this concern.

FINDING: Meets standard.

(g) Verification of correctness in the original zoning or General Plan for the area in question.

Applicant Response: No response.

Staff Response: Zoning and General Plan designations are correct (with a slight mapping boundary issue on the General Plan residential designation: the residential designation does not cover the entire subject property, but the general plan map areas are not meant to follow property lines).

FINDING: Meets standard.

(h) In cases where a conflict arises between the General Plan Map and General Plan Policies, precedence shall be given to the Plan Policies.

Applicant Response: No response.

Staff Response: Policies have taken precedence.

FINDING: Meets standard.

APPLICABLE ZONING CODES

Provo City Code 14.50(10): [https://provo.municipal.codes/Code/14.50\(10\)](https://provo.municipal.codes/Code/14.50(10))

POSSIBLE MOTIONS AND FINDINGS

The Planning Commission may make any of the following findings:

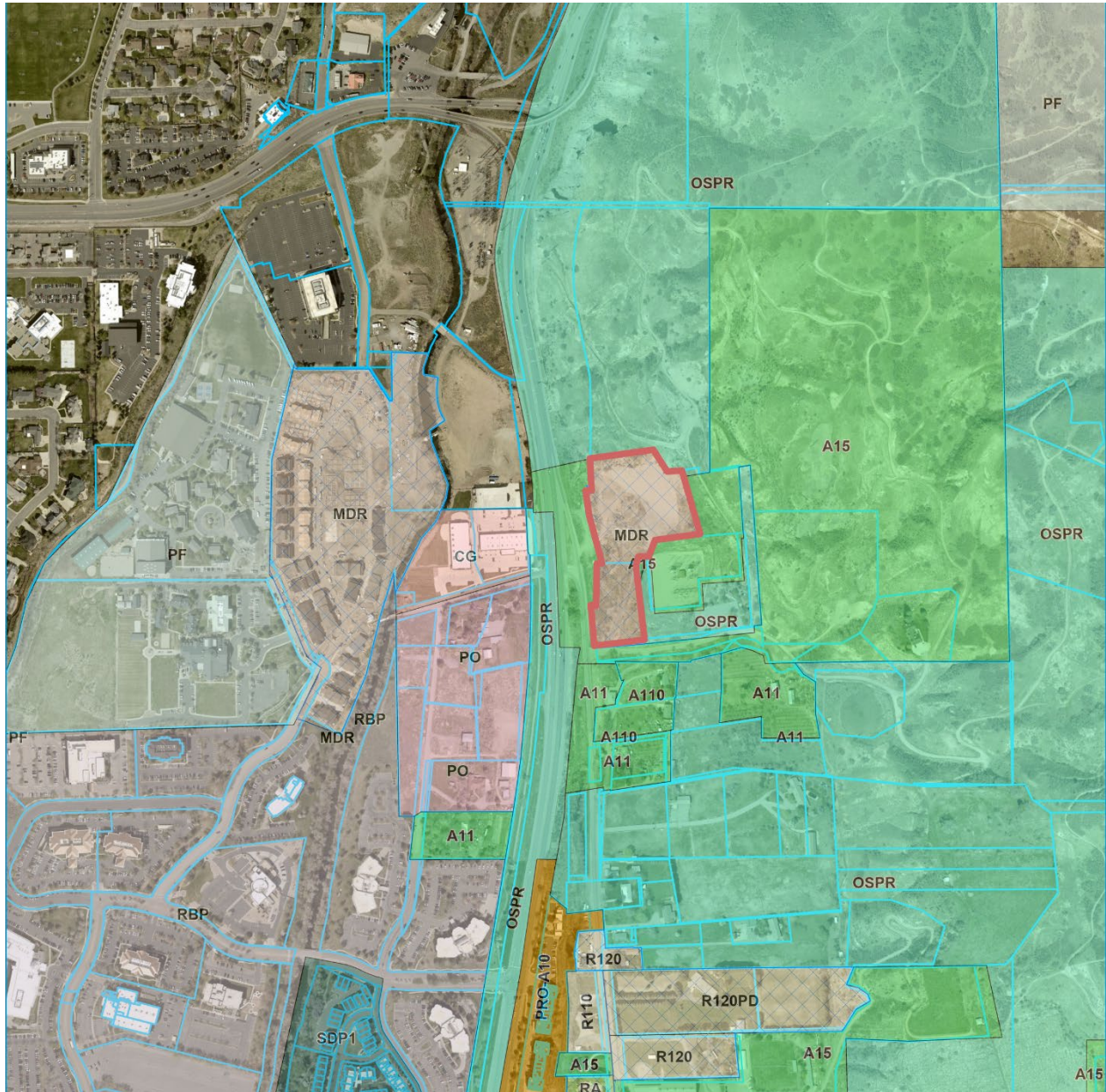
1. **Recommend Approval:** The proposal is consistent with the General Plan. *Make a motion to recommend approval of the proposed zone map amendment from the MDR Zone to the PRO-A10 Zone to the City Council. (state findings).*
2. **Recommend Denial:** The proposal is not consistent with the General Plan. *Make a motion to recommend denial of the proposed zone map amendment from*

- the MDR Zone to the PRO-A10 Zone to the City Council. (state findings).*
3. **Continue:** New information presented at the public hearing or additional study needs to be done. *Make a motion to continue the proposed zone map amendment from the MDR Zone to the PRO-A10 Zone to the City Council. (state findings).*

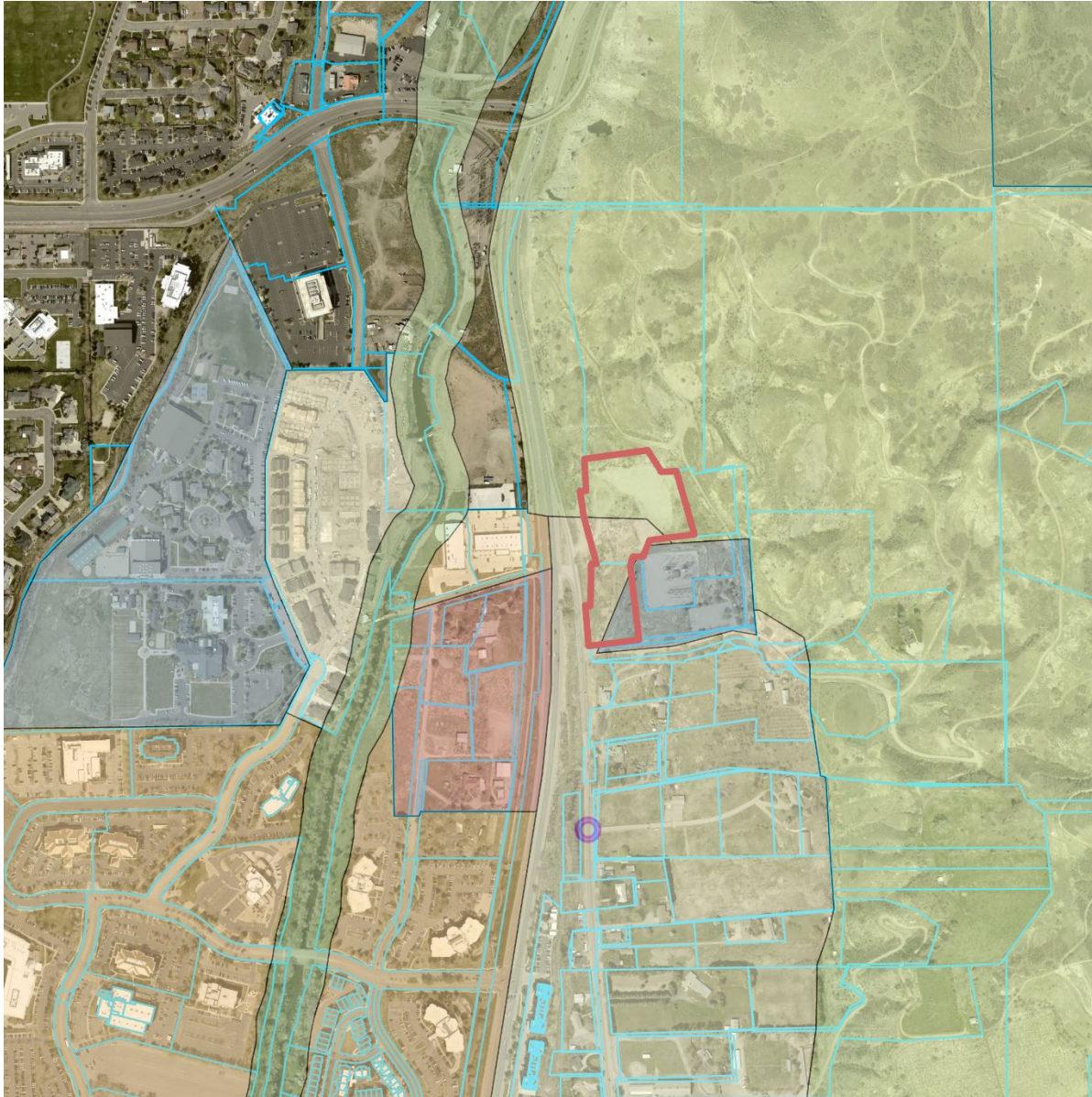
ATTACHMENTS

1. Existing Zone Map
2. General Plan Map
3. Northeast Neighborhood Plan Future Land Use Map
4. Applicant Statement
5. April 1, 2026, Neighborhood Meeting Minutes

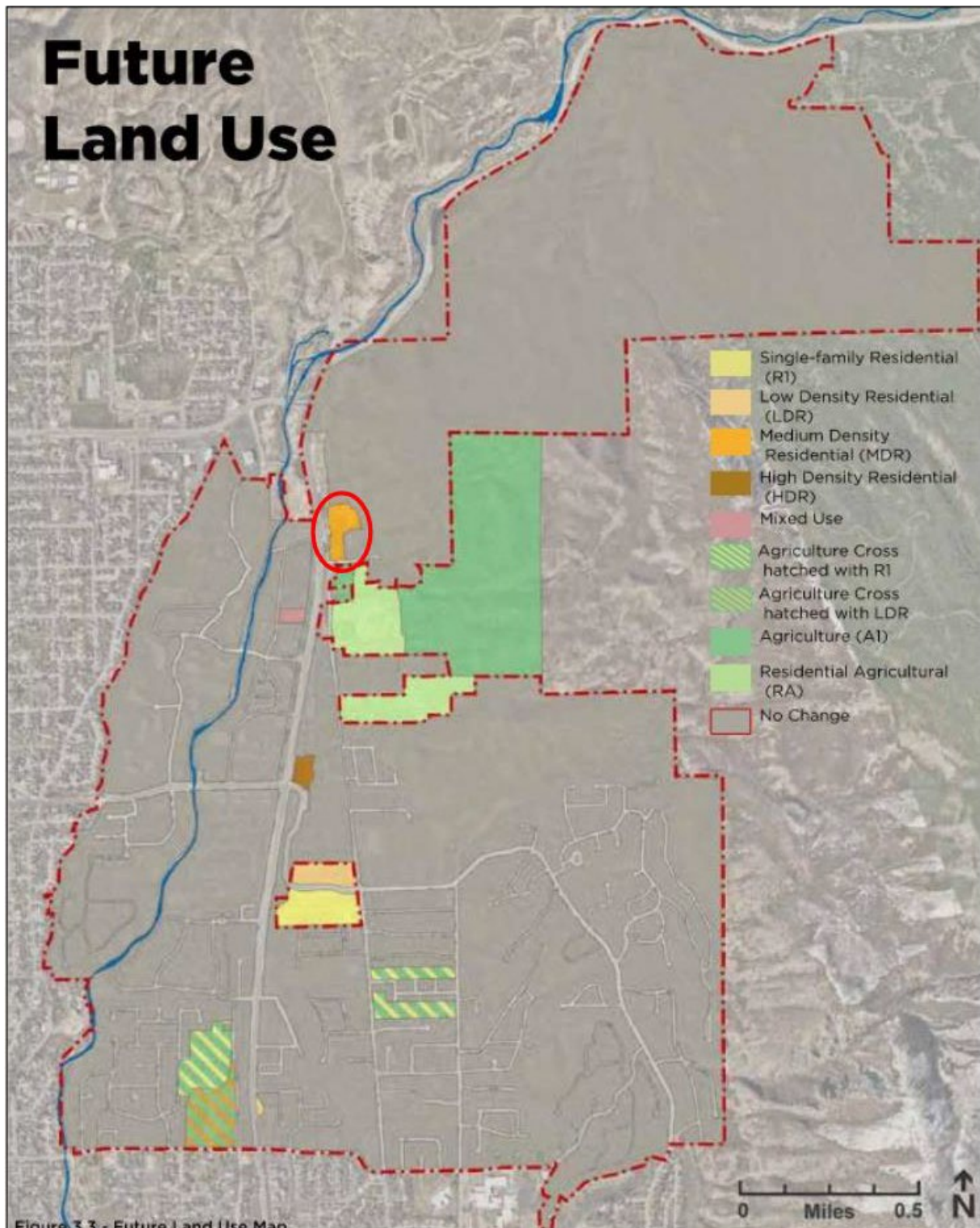
ATTACHMENT 1 – EXISTING ZONE MAP



ATTACHMENT 2 – GENERAL PLAN MAP



ATTACHMENT 3 – NORTHEAST NEIGHBORHOOD PLAN FUTURE LAND USE MAP



ATTACHMENT 4 – APPLICANT STATEMENT

February 2, 2026

RE: Cirque Condos Rezone

Approximately 5600 N University Ave

To Whom It May Concern:

It is requested that the subject property be rezoned from MDR to **ARBORS ON THE AVENUE PROJECT REDEVELOPMENT OPTION ZONE**. The reason and justification for such zone change is as follows:

- The proposed zone change allows for the development of a Condo Project
- Property on the same side of University Avenue to the south has similar zoning
- Current status quo of the property is a blight in the city and a zone change will facilitate development, thus improving the aesthetics of this area
- Development of this property will facilitate improvements to city infrastructure
- There is market demand for more residential units

Sincerely,

A handwritten signature in black ink, appearing to read "David Bragonje". The signature is fluid and cursive, with a long horizontal stroke extending to the right.

David Bragonje

Cirque Condos, LLC

801-636-9513

ATTACHMENT 5 – APRIL 1, 2026, NEIGHBORHOOD MEETING MINUTES

Update on a proposed zone change from MDR (Medium Density Residential) to PRO-A10 (Arbors on the Avenue) and a request to amend the Development Agreement for a 46-unit condo project at 5568 North Canyon Road in the North Timpview Neighborhood

Planning Supervisor Aaron Ardmore provided an update on the 5055 North Canyon rezone project, formerly a gravel pit location. The property owner previously received approval for Medium Density Residential zoning with a development agreement limiting the project to 16 townhome units due to sewer infrastructure limitations.

Public Works has since worked with consultants and property owners to find solutions for sewer infrastructure gaps, prompting the current rezone request. The applicant is now proposing to change from MDR to PRO (Provo Ordinance) zone, specifically matching the zoning used for Arbors on the Avenue development further down Canyon Road. The density would remain consistent with the medium density residential calculation that was approved in the neighborhood standards plan.

The proposal includes 46 owner-occupied condo units with conceptual elevations showing how buildings would be situated on the sloped site. The project includes underground parking and surface parking, providing 2.25 parking spaces per unit. Units would be 2 and 3 bedrooms.

Questions were raised about structural safety given the hillside location. Ardmore assured that multiple levels of government regulation would ensure safety standards are met. The project would also require amendments to the existing development agreement, specifically updating the site plan that currently limits development to 16 units.

Current zoning (MDR) would technically allow 30 units per acre at 45 feet height, while the PRO-A10 zone allows 24 units per acre at 60 feet height. The developer is requesting fewer units than currently entitled but with different building parameters.

An opinion poll was conducted with three options:

- Favoring the project as proposed with no development agreement restrictions: **0**
- Favoring the project with a development agreement limiting it to 46 units: **10**
- Maintaining current approval (MDR with development agreement for 16 units): **13**

ITEM 4 Dudley & Associates request Final Subdivision approval for a two-lot residential subdivision in the R1.8 (One Family Residential) Zone, including a Variance request to Provo City Code 15.05.160, located at 2132 N Carterville Road. Carterville Neighborhood. Jessica Dahneke (801) 852-6413 PLFSUB20250356

APPLICANT:	Dudley & Associates
PROPERTY OWNER:	Marilee and Gregory Jolley
PARCEL ID:	52:929:0003
ACREAGE:	.394
CURRENT LEGAL USE:	Vacant Parcel
GENERAL PLAN DESIGNATION:	Residential
CURRENT ZONE:	R1.8
APPLICATION TYPE:	Administrative Decision – must be approved if it meets all city standards.

NEIGHBORHOOD FEEDBACK

The applicant originally proposed rezoning and subdividing the property to accommodate two twin homes. This proposal was presented at the March 4th Northwest District Meeting, where neighboring residents raised several concerns, including increased parking and traffic impacts, difficulty enforcing occupancy limits, and a desire to preserve the single-family residential character of the area. The applicant has since withdrawn the rezone request and revised the project. The current proposal is a standard subdivision to create two single-family lots.

PROJECT SUMMARY

The applicant is seeking to subdivide their existing parcel into two parcels and construct a single-family home on each. The subdivision request has been reviewed by staff and meets all applicable code requirements for approval. However, the proposed building sites are located on slopes exceeding 30%. In order to construct the homes, the applicant must obtain a variance for building on slopes of 30% or greater from the Planning Commission.

STAFF ANALYSIS

The applicant and staff have provided analysis of the variance criteria listed in Provo City Code 14.05.030(9)(b)

- (i) Literal enforcement of this Title would cause an unreasonable hardship for the applicant that is not necessary to carry out the general purpose of this Title;

Applicant Response: Literal enforcement of the zoning standards due to this property's 30% hillside slope would cause an unreasonable hardship not necessary to carry out the general purpose of the ordinance.

Without a variance, the land—zoned for single-family use—has no practical residential development potential. A vacant sloped parcel would remain unproductive.

The submitted geotechnical report confirms that the lots are buildable with proper engineering. Granting the variance enables safe, code-compliant development that serves the ordinance goals of orderly residential use.

I have owned the parcel outright since 1996. I built a house for one daughter near this parcel and my other daughter lives one mile away. My long-standing plan has been to subdivide the lot and build an accessible home for myself, allowing independent living as I age, with family support nearby

Staff Response: Literal enforcement of this title would mean the lots would remain unbuildable.

Finding: Complies

(ii) There are special circumstances attached to the property that do not generally apply to other properties in the same district;

Applicant Response: The special circumstance is this property's steep 30% hillside topography—a natural, pre-existing condition unique to my parcel. Neighboring properties in the same district are more flat and fully developable without a variance. The slope is the sole factor necessitating relief, as verified by the geotechnical report, and is not a general neighborhood condition.

Staff Response: This parcel is the only parcel along Carterville Road where the legal building area is too small to accommodate a single-family home.

Finding: Complies

(iii) Granting the variance is essential to the enjoyment of a substantial property right possessed by other property in the same district;

Applicant Response: Granting the variance is essential for me to enjoy the same substantial property right held by other single-family lots in the district—the right to subdivide and develop the land for a permitted single-family dwelling. Surrounding properties can exercise this right without a variance because they lack the steep slope present here. The requested variance is the minimum necessary to allow reasonable use consistent with the zoning.

Staff Response: All other parcels on the street have been able to develop their properties in accordance with the zone. The right to develop a single-family dwelling is contingent on obtaining a variance.

Finding: Complies

(iv) The variance will not substantially affect the general plan and will not be contrary to the public interest; and

Applicant Response: This variance will not substantially affect Provo's General Plan and is not contrary to the public interest. The General Plan supports compatible residential infill and development. Subdividing this long-vacant parcel to create two single-family homes will improve the neighborhood's appearance and stability rather than leaving the lot undeveloped. Neighbors are not opposed to the proposed dwellings. The geotechnical report shows that the site can be developed safely while meeting all engineering requirements. This supports additional housing consistent with residential zoning.

Staff Response: The intended future use aligns with the general plan therefore, granting this variance does not substantially affect the general plan and would not be contrary to the public interest.

Finding: Complies

(v) The spirit of this Title is observed and substantial justice done.

Applicant Response: Granting the variance observes the spirit of the zoning ordinance and accomplishes substantial justice. The ordinance promotes orderly, safe, and reasonable residential development while protecting public health, safety, and welfare. The geotechnical report confirms the proposed subdivision and homes can be engineered to meet all safety standards. Approval provides justice for this long-owned parcel without undermining the ordinance's goals. Denial would leave the lot vacant and unusable, serving no public purpose.

Staff Response: The geotechnical report gives the parameters for how the applicant can build safely build on their lot which aligns with the spirit of the title.

Finding: Complies

APPLICABLE ZONING CODES

PCC 15.05.160(1) Hillside Development Standards:
<https://provo.municipal.codes/Code/15.05.160>

PCC 15.07.010 (Variances to title 15)

<https://provo.municipal.codes/Code/15.07>

PCC 14.05.030(9) (Variances)

<https://provo.municipal.codes/Code/14.05.030>

POSSIBLE MOTIONS AND FINDINGS

The Planning Commission may make any of the following findings:

1. **Approve:** The proposal is consistent with city code. (*add specific motion language from notice for PC to use*)
2. **Deny:** The proposal is not consistent with city code. (*add specific motion language from notice for PC to use*)
3. **Continue:** New information presented at the public hearing or additional study needs to be done. (*add specific motion language from notice for PC to use*)

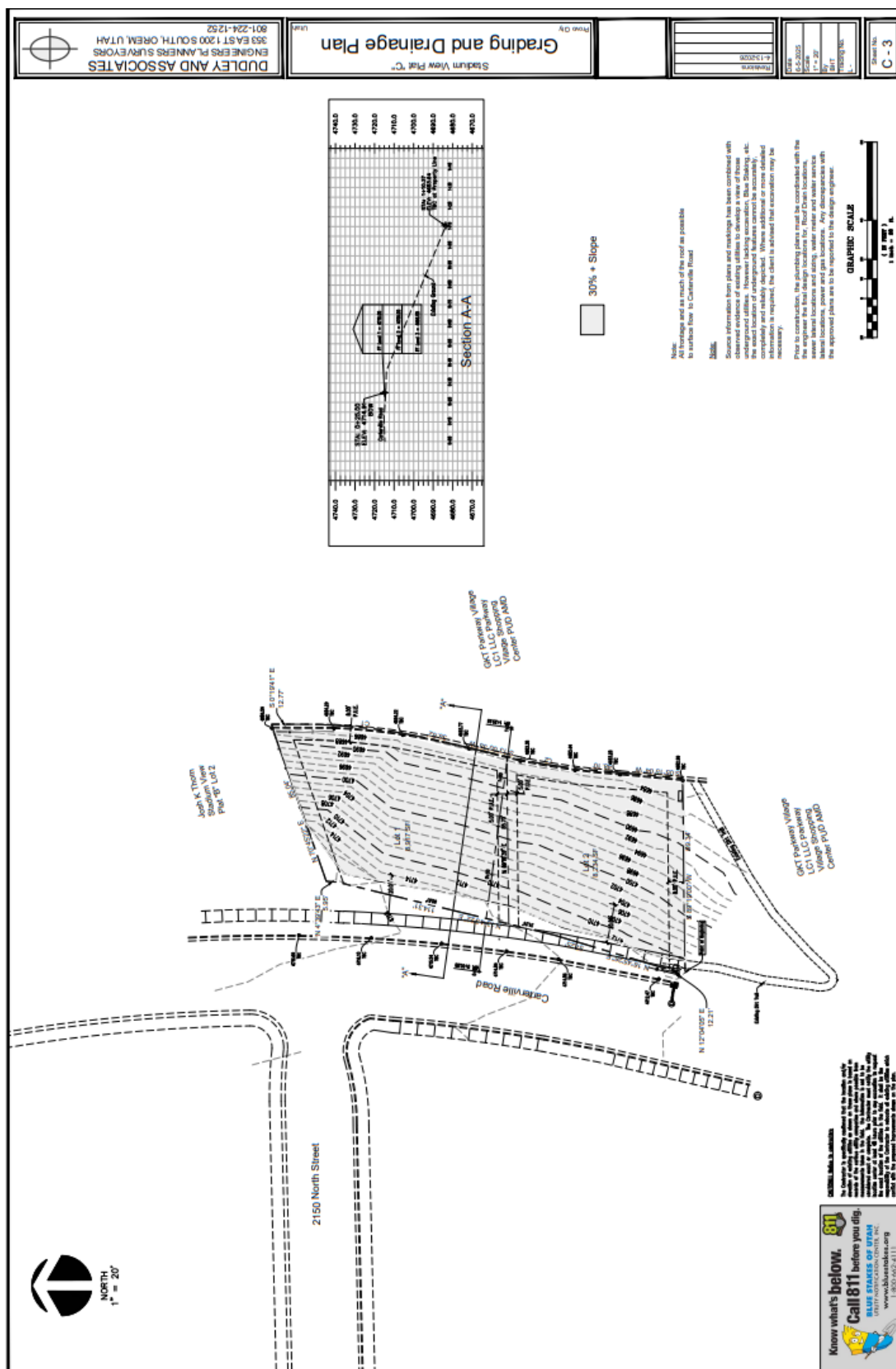
ATTACHMENTS

1. Aerial View of the Property
2. Slope Map
3. Excerpt from the Geotechnical Report

ATTACHMENT 1 – AERIAL VIEW OF THE PROPERTY



ATTACHMENT 2 – SLOPE MAP



ATTACHMENT 3 – EXCERPT FROM THE GEOTECHNICAL REPORT

6.2 Design Considerations

Very dense gravel with possible cobbles was encountered in the borings. These oversized materials, greater than 6 inches, could present construction difficulties for foundation, utility trench, and other excavations.

It should be noted that shallow foundation systems are not designed to resist soil movements resulting from sewer or plumbing leaks, excessive or leaking irrigation systems, poor drainage, or water ponding near structures.

6.3 Foundations

If the recommendations contained in this report are followed, the proposed structures can be supported by conventional shallow spread footings bearing on dense to medium dense sands and gravels. Footings should bear at least 2.5 feet below the lowest adjacent finished grade. Footings may be designed to impose a maximum dead plus live-load pressure of up to 2000 pounds per square foot.

Any existing fill on the site should not be used for support of foundations without removal and recompaction. Alternative footing depths and design bearing capacities are presented in the following tabulation:

Footing Depth Below Finished Grade¹ (ft)	Allowable Bearing Capacity² (psf)
2.5 ³	2000
1.5, Interior	2000

We anticipate that total settlement of the proposed structures, supported as recommended, should be less than 1-inch. Differential settlement should be less than ¾-inch. Additional foundation movements could occur if water from any source infiltrates the foundation soils. Therefore, proper drainage should be provided in the final design and during construction.

Finished grade is the lowest adjacent grade for perimeter footings and floor level for interior footings. The design bearing capacities apply to dead loads plus design live load conditions. Recommended minimum widths of column and wall footings are 30 inches and 24 inches, respectively. The bearing values given are net bearing values and the weight of the concrete in the footings may be ignored.

For foundations located adjacent to slopes, a minimum horizontal setback of five (5) feet should be maintained between the foundation base and slope face. In addition, the setback should be such that an imaginary line extending down at 45 degrees from the nearest foundation edge does not intersect the slope.

Thickened slab sections can be used to support interior partitions, provided that loads do not exceed 900 pounds per linear foot, thickened sections have a minimum width of 12 inches, and thickness and reinforcement are consistent with structural requirements.

All footings, stem walls, and masonry walls should be reinforced to reduce the potential for distress caused by differential foundation movements. The use of joints at openings or other discontinuities in masonry walls is recommended.

¹ Finished grade is the lowest adjacent grade for perimeter footings and floor level for interior footings.

² Allowable bearing capacities assume fulfillment of **EARTHWORK** recommendations. Pounds per square foot (psf).

³ Minimum depth for frost protection of exterior footings or footings in unheated spaces.

-
- *ITEM 5** Reza Fakhrieh requests a Zone Map Amendment from the A1.5CH (Agricultural with Critical Hillside Overlay) and OSPR (Open Space Preservation and Recreation) Zones to the Reza Fakhrieh requests a Zone Map Amendment from the A1.5CH (Agricultural with Critical Hillside Overlay) and OSPR (Open Space Preservation and Recreation) Zones to the A1.1CH, RA (Residential Agricultural), and RACH Zones for a residential development with 64 lots and 38 townhomes, located approximately at 5450 N Canyon Rd. North Timpview Neighborhood. Jessica Dahneke (801) 852-6413 jdahneke@provo.gov PLRZ20260115
-

APPLICANT:	Reza Fakhrieh
PROPERTY OWNER:	BRMK Provo Canyon LLC, S&E Smith #1 LLC, S&E Smith #2 LLC
PARCEL ID:	See Attachment 1
ACREAGE:	155
CURRENT LEGAL USE:	Vacant
GENERAL PLAN DESIGNATION:	Residential and Agricultural
CURRENT ZONE:	OSPR
APPLICATION TYPE:	Legislative Decision – Planning Commission will make a recommendation to the City Council.

PROPERTY HISTORY

On December 2, 2025, the City Council approved an ordinance to annex this property into the city.

NEIGHBORHOOD FEEDBACK

This application was presented at the North District Meeting on April 1st, 2026. Concerns raised by the residents in attendance included the impact on traffic along Canyon Rd, the construction impacts, conservation and preservation of open space, and fire risk. A poll of the residents attending the meeting had 11 attendees in favor of keeping the area zoned OSPR and 21 in favor of the project. Since the meeting, staff have received additional emails expressing similar concerns to those raised in the district meeting.

PROJECT SUMMARY

The applicant is seeking a zone map amendment and concept plan approval for 155 acres of property located at 5450 North Canyon Road. The proposal divides the site into three base zones — R1.20, Residential Agricultural (RA), and Agricultural (A1.1). The Critical Hillside (CH) overlay and Performance Development (PD) overlay zones will be applied across the entire project area.

The zoning distribution reflects the varying topography of the site: the eastern portion, where slopes are most pronounced, is proposed for the A1.1 zone with larger single-family lots; the southern portion, where grades are somewhat less severe, is proposed for the RA zone with smaller single-family lots; and the western portion is proposed for R1.20 zoning with townhomes. The surrounding area is predominantly zoned agricultural and single-family residential, with small portions of Open Space, Preservation, and Recreation and Medium Density Residential located to the north.

Both this rezone application and the associated concept plan (see item 6 staff report) application have been reviewed by the CRC. As shown in the CRC report included as attachment 8, the outstanding departmental comments are specific to the concept plan, and not with the proposed zones. However, the applicant has requested that these applications be brought before the Planning Commission at this time. The additional details and changes that staff need to see could be handled with the future Project Plan and Subdivision applications. In conjunction with the rezone and concept plan, the applicant has proffered a development agreement, the details of which will be worked out with Staff and City Council.

Shortly Before Publishing the staff report staff received word from S&E Smith #1 LLC, owners of parcel 20:014:0118, that they may not want to be included in the rezone due to a desire to have their property in an agricultural protection area.

STAFF ANALYSIS

Before recommending an amendment, the Commission must find that the amendment serves the public interest and aligns with the General Plan, based on consideration of the following:

- (a) Public purpose for the amendment in question;

Applicant Response: No response

Staff Response: The proposed zone map amendment is for residential development.

FINDING: Meets Standard

- (b) Confirmation that the public purpose is best served by the amendment in question;

Applicant Response: The planning and design of this community are being guided by the principles and requirements of Provo City's Critical Hillside Overlay Zone (Chapter 14.33A), ensuring that development is responsible, sustainable, and in harmony with the land. We are committed to protecting the natural contours of the hillside, minimizing soil disturbance, preserving view corridors, and integrating open space in a way that upholds the intent and spirit of the overlay zone. Through careful stewardship and thoughtful planning, Foothill Orchards will reflect a shared commitment to preserving both the land's ecological integrity, agricultural roots and its cultural heritage for generations to come.

Staff Response: The proposed zone map amendment and concept plan show an effective use of land while keeping in line with the zones in the General Plan Map and preserving access to open space.

FINDING: Meets Standard

(c) Compatibility of the proposed amendment with General Plan policies, goals, and objectives;

Applicant Response: Furthermore, Foothill Orchard is aligned with and actively supports the goals and initiatives outlined in the Provo City North District Plan. As part of this district, our development will contribute to the city's broader objectives of enhancing neighborhood livability, preserving community identity, and strengthening connections between residents, nature, and local resources. Foothill Orchards supports the North Districts emphasis on protecting natural landscapes, promoting walkability, and creating thoughtful transitions between residential development and open space. We are committed to enhancing trail access, integrating passive and active recreation opportunities, and ensuring the neighborhood complements the scenic and cultural character of the district.

Staff Response: The proposed rezone is compatible with the following General Plan Goals:

GENERAL PLAN

Land Use 1a.: Encourage the development of additional single-family home developments in key areas to address housing shortages and facilitate additional economic growth and economic opportunities.

Housing 1d.: Encourage the development of additional single-family homes in key areas, such as the city's west side, to address housing shortages, and to facilitate additional economic growth and opportunities

Housing 2b.: Consider non-traditional approaches to high-end housing.

HILLSIDES AND CANYONS PLAN

Natural Environment

1c.2: Consider the Wildland-Urban Interface (WUI) and best practices for fuels mitigation strategies

1c.3: Consider seismic activity in development review.

Built Environment

3a.1: Adhere to best practices for Hillside Development

NORTHEAST NEIGHBORHOOD PLAN

Land Use

Work with developers to ensure that any future road network prioritizes road connectivity and accessibility

Development Difficulties

Work with developers to install a new water tank on the hillside to provide adequate water pressure.

FINDING: Meets Standard

(d) Consistency of the proposed amendment with the General Plan's "timing and sequencing" provisions on changes of use, insofar as they are articulated;

Applicant Response: No response

Staff Response: Staff is unaware of any conflict with the timing and sequencing provisions of the General Plan.

FINDING: Meets Standard

(e) Potential of the proposed amendment to hinder or obstruct attainment of the General Plan's articulated policies;

Applicant Response: No response

Staff Response: Staff is unaware of any potential interference with the General Plan implementation

FINDING: Meets Standard

(f) Adverse impacts on adjacent land owners; and

Applicant Response: By offering a development that is both sensitive and responsive to the area's unique topography and community values, Foothill Orchards will serve as a model for responsible Foothill living, where growth does not come at the expense of beauty, ecology, or identity, but rather enhances them all.

Staff Response: The applicant is working with Public Works to ensure that any adverse impacts to the geology of the surrounding area are mitigated. Additional details as to

how this will be achieved will be provided with the required project plan. The most noticeable impact to the surrounding neighborhood will be an increase in traffic.

FINDING: Meets Standard

(g) Verification of correctness in the original zoning or General Plan for the area in question.

Applicant Response: No response

Staff Response: Staff do not see any conflict between the proposed rezone and the General Plan policies or Map.

FINDING: Meets Standard

Further analysis is provided by responding to the General Plan criteria for “Evaluating Proposed Rezone Applications for Housing Developments” found on page 45:

- Would the rezone promote one of the top 3 housing strategies?
 - Promote a mix of home types, sizes, and price points
 - Support zoning to promote ADUs and infill development
 - Recognize the value of single-family neighborhoods

Staff Response: The proposed rezone and concept plan are for a residential development that includes both townhomes and single-family dwellings. The RA zone does allow for ADUs

- Are utilities and streets currently within 300 feet of the property proposed for rezone?

Staff Response: No, the applicant has been working with Public Works to plan how to best add infrastructure to meet both the project and the City’s needs.

- Would the rezone exclude land that is currently being used for agricultural use?

Staff Response: No

- Does the rezone facilitate housing that has reasonable proximity (1/2 mile) to public transit stops or stations?

Staff Response: No

- Would the rezone encourage development of environmentally or geologically sensitive, or fire or flood prone lands? If so, has the applicant demonstrated these issues can reasonably be mitigated?

Staff Response: The proposed rezone is in an area with steep hillsides and geologically sensitive lands. As part of their rezone proposal, they are including the Critical Hillside Overlay to help ensure sensitive areas are protected and they have been working with engineering to ensure the development mitigates any concerns in geologically sensitive area.

- Would the proposed rezone facilitate the increase of on-street parking within 500 feet of the subject property? If so, is the applicant willing to guarantee use of a TDM in relation to the property to reduce the need for on-street parking?

Staff Response: The proposed rezone and concept plan are for single-family dwellings that provide the required amount of off-street parking. This project should not facilitate the increase of on-street parking within 500 feet of the project area.

- Would the rezone facilitate a housing development with significant for-sale housing units for owner-occupied? Is the applicant willing to guarantee such?

Staff Response: The proposed rezone is for a residential development. The applicant has stated that the intent is for these units to be for sale units.

- Would the proposed rezone facilitate a housing development where at least 10% of the housing units are attainable to those making between 50-97% AMI? Is the applicant willing to guarantee such?

Staff Response: No

APPLICABLE ZONING CODES

Provo City Code 14.31

<https://provo.municipal.codes/Code/14.31>

Provo City Code 14.33A

<https://provo.municipal.codes/Code/14.33A>

Provo City Code 14.08

<https://provo.municipal.codes/Code/14.08>

Provo City Code 14.09

<https://provo.municipal.codes/Code/14.09>

Provo City Code 14.10

<https://provo.municipal.codes/Code/14.10>

Provo City Code 15.05.160

<https://provo.municipal.codes/Code/15.05.160>

POSSIBLE MOTIONS AND FINDINGS

The Planning Commission may make any of the following findings:

1. **Recommend Approval**: The proposal is consistent with the General Plan. *Make a motion that the Planning Commission Recommend approval of the rezone of 155 acres of land from A1.5 and OSPR to the A1.1CHPD (Agricultural with Critical Hillside Overlay and Performance Development Overlay), RACHPD (Residential Agricultural with Critical Hillside Overlay and Performance Development Overlay), and R1.20CHPD (Residential Single-family with Critical Hillside Overlay and Performance Development Overlay) Zones located at approximately 5450 North Canyon Road. (state findings/reasons).*
2. **Recommend Denial**: The proposal is not consistent with the General Plan. *Make a motion that Planning Commission Recommend Denial the rezone of 155 acres of land from the A1.5 and the OSPR zones to the A1.1CHPD (Agricultural with Critical Hillside Overlay and Performance Development Overlay), RACHPD (Residential Agricultural with Critical Hillside Overlay and Performance Development Overlay), and R1.20CHPD (Residential Single-family with Critical Hillside Overlay and Performance Development Overlay) Zones located at approximately 5450 North Canyon Road. (state findings/reasons).*
3. **Continue**: New information presented at the public hearing or additional study needs to be done. *Make a motion that the Planning Commission continues the rezone of 155 acres from the A1.5 and the OSPR zones to the A1.1CHPD (Agricultural with Critical Hillside Overlay and Performance Development Overlay), RACHPD (Residential Agricultural with Critical Hillside Overlay and Performance Development Overlay), and R1.20CHPD (Residential Single-family with Critical Hillside Overlay and Performance Development Overlay) Zones located at approximately 5450 North Canyon Road (state findings/reasons).*

ATTACHMENTS

1. List of Parcel Numbers
2. Aerial View of the Property
3. Proposed Zone Exhibits
4. Concept Plan
5. Foothills Orchard Development Narrative
6. General Plan Future Land Use Map
7. Northeast Future Land Use Map
8. Most Recent CRC Report

ATTACHMENT 1 – LIST OF PARCEL NUMBERS

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20:014:0042

20:014:0101

20:014:0006

20:017:0001

20:017:0015

20:017:0010

20:017:0011

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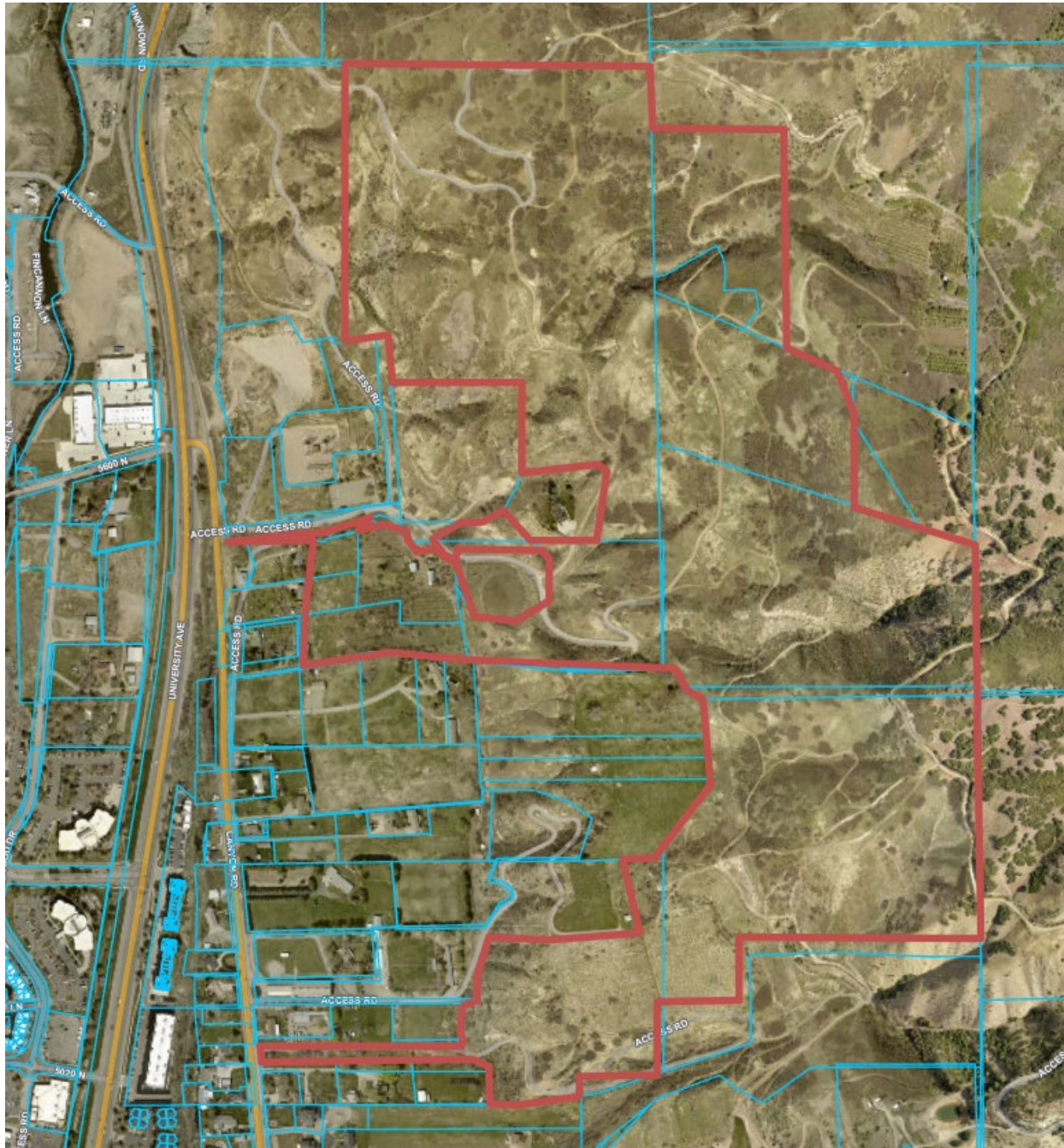
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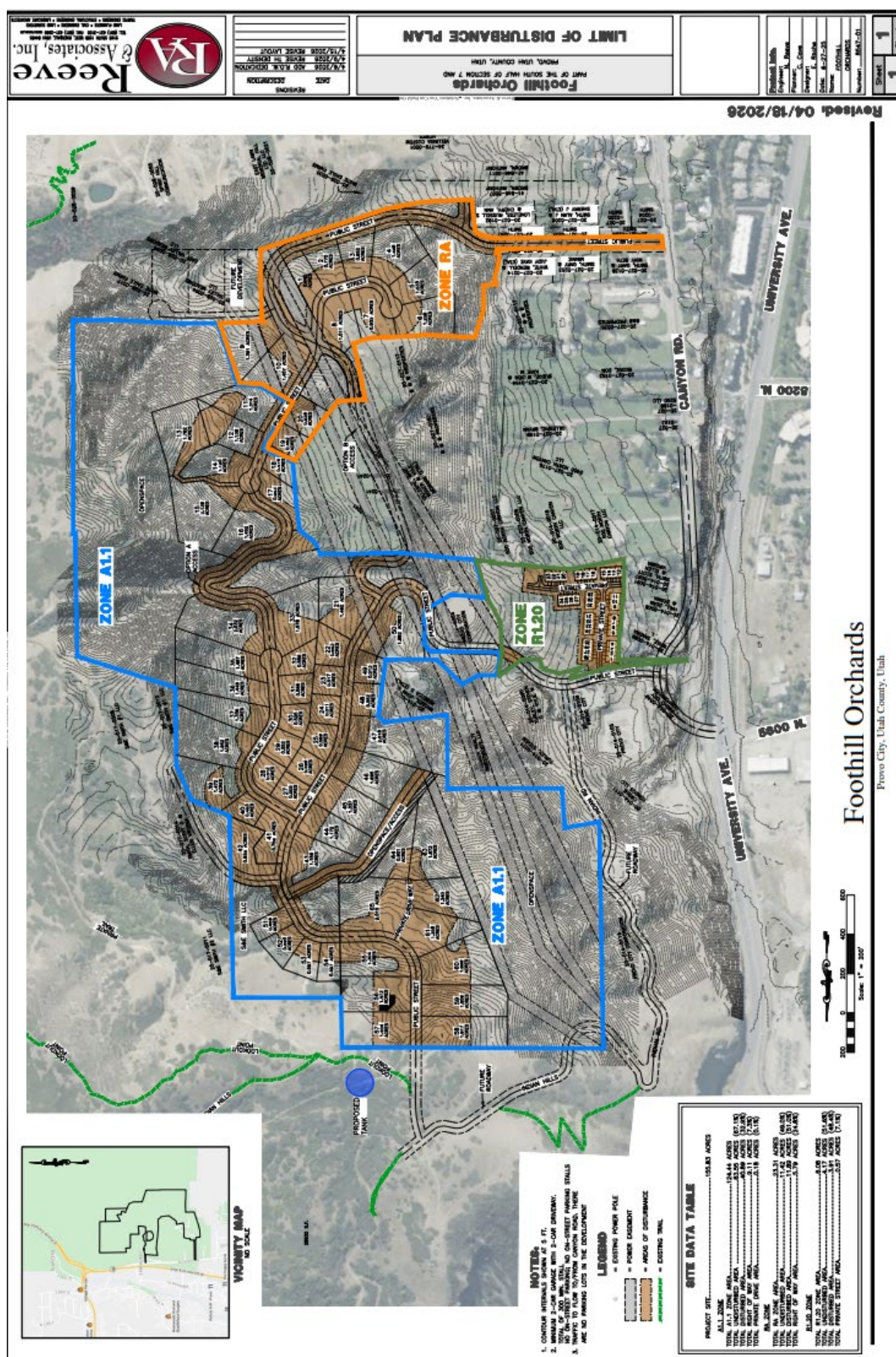
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ATTACHMENT 2 – AERIAL VIEW OF THE PROPERTY



ATTACHMENT 3 – PROPOSED ZONE EXHIBITS



ATTACHMENT 4 – CONCEPT PLAN



ATTACHMENT 5 – FOOTHILLS ORCHARD DEVELOPMENT **NARRATIVE**

FOOTHILL ORCHARDS DEVELOPMENT

Throughout its evolution, the North Timpview neighborhood has remained deeply rooted in its agricultural heritage. While it has grown and adapted over time, it continues to embrace a lifestyle that honors its origins, supporting commercial agriculture, family-run orchards and gardens, open pastures, and the timeless charm of homestead-style living. This rural character doesn't stand in contrast to its residential development; rather, it harmoniously coexists with more traditional suburban homes, creating a neighborhood that feels both grounded and vibrant.

North Timpview is a unique and thoughtful blend - a place where agriculture, natural beauty, recreation, and family life are not just adjacent, but interwoven. Residents enjoy scenic mountain views, access to trails and open space, and a community spirit that celebrates self-reliance, stewardship of the land, and connection with neighbors. It's a rare marriage of pastoral charm and residential comfort, making it one of the most distinctive and beloved neighborhoods in the region.

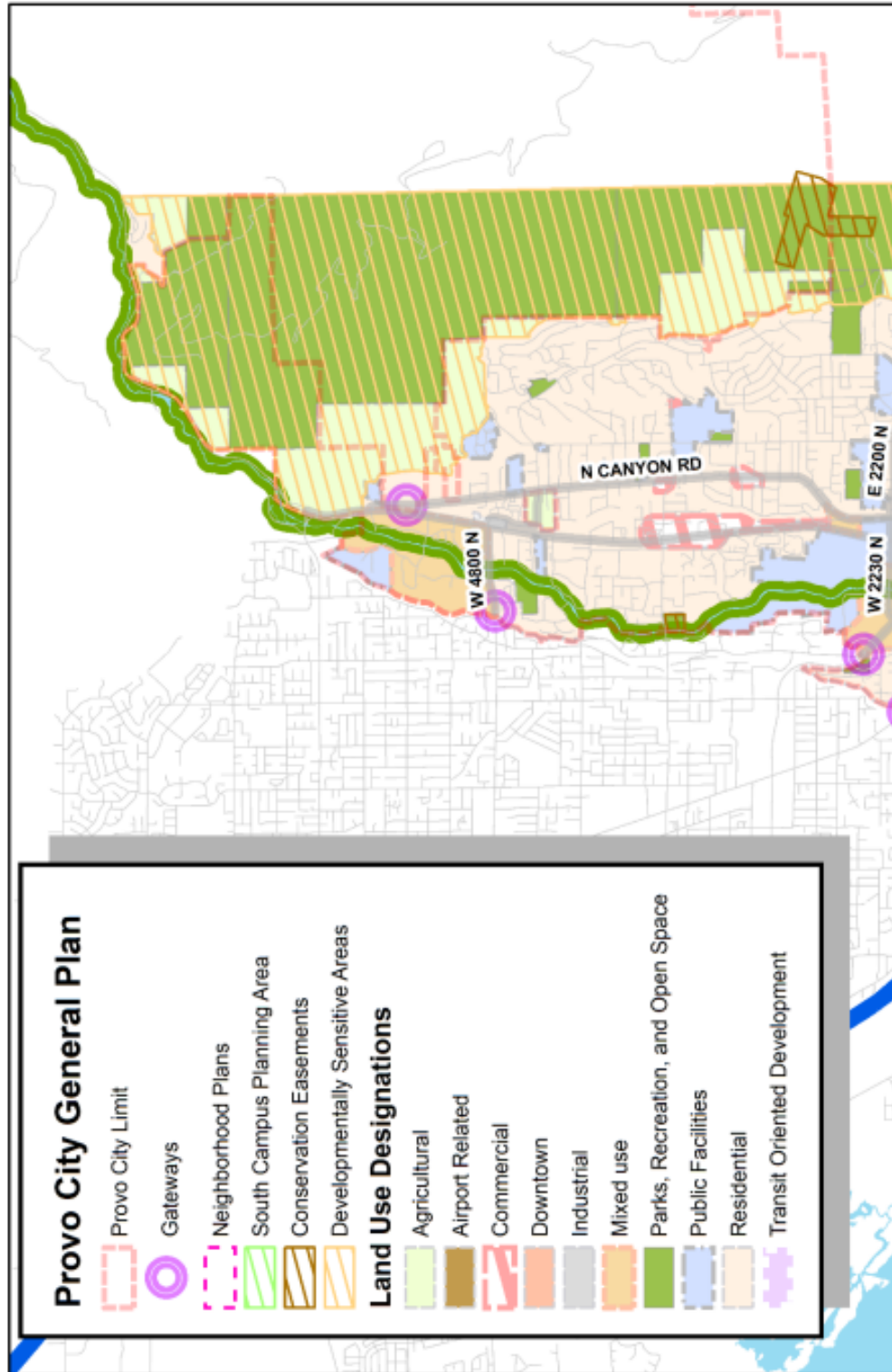
With the Foothill Orchard neighborhood, we hope to thoughtfully build upon this rich legacy. Our vision is to create a place that both honors and enhances the land's origin story - preserving open space, reinforcing ties to nature, and providing families with meaningful ways to connect with their surroundings. By weaving together the values of agriculture, family, and community, Foothill Orchard will not only protect the character of this treasured area but also invite new families to become part of its story, adding their names to a living legacy shaped by care, tradition, and belonging.

Importantly, the Foothill Orchard neighborhood has been conceived with full respect for the environmental sensitivity and scenic value of the site. The planning and design of this community are being guided by the principles and requirements of Provo City's Critical Hillside Overlay Zone (Chapter 14.33A), ensuring that development is responsible, sustainable, and in harmony with the land. We are committed to protecting the natural contours of the hillside, minimizing soil disturbance, preserving view corridors, and integrating open space in a way that upholds the intent and spirit of the overlay zone. Through careful stewardship and thoughtful planning, Foothill Orchards will reflect a shared commitment to preserving both the land's ecological integrity, agricultural roots and its cultural heritage for generations to come.

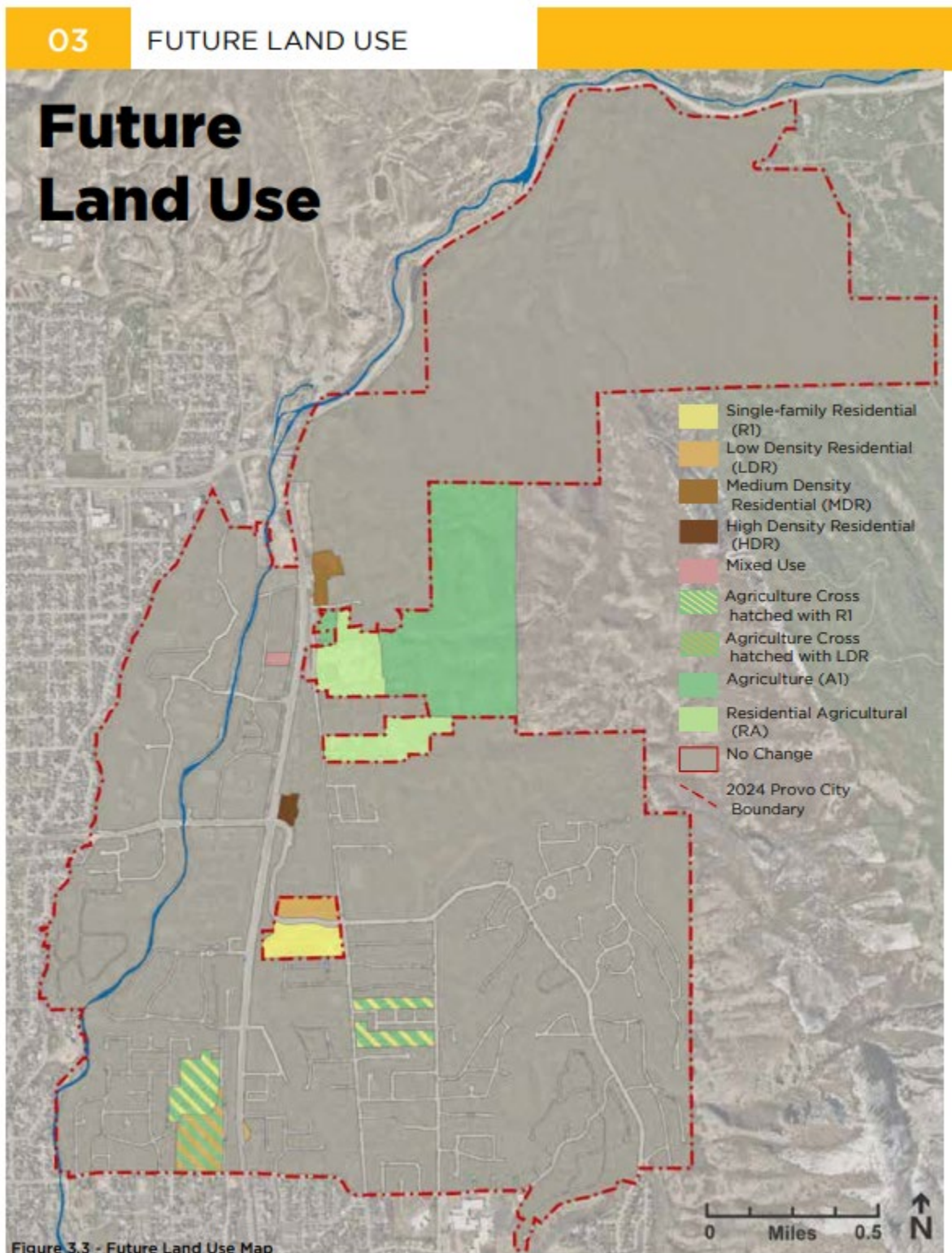
Furthermore, Foothill Orchard is aligned with and actively supports the goals and initiatives outlined in the Provo City North District Plan. As part of this district, our development will contribute to the city's broader objectives of enhancing neighborhood livability, preserving community identity, and strengthening connections between residents, nature, and local resources. Foothill Orchards supports the North Districts emphasis on protecting natural landscapes, promoting walkability, and creating thoughtful transitions between residential development and open space. We are committed to enhancing trail access, integrating passive and active recreation opportunities, and ensuring the neighborhood complements the scenic and cultural character of the district.

By offering a development that is both sensitive and responsive to the area's unique topography and community values, Foothill Orchards will serve as a model for responsible Foothill living, where growth does not come at the expense of beauty, ecology, or identity, but rather enhances them all.

ATTACHMENT 6 – GENERAL PLAN FUTURE LAND USE MAP



ATTACHMENT 7 – NORTHEAST FUTURE LAND USE MAP



ATTACHMENT 8 – MOST RECENT CRC REPORT

Coordinator Review Committee Report

For reference, redlined plans may be found online at provo.org/portal under the “My Items” tab.

Submitted: March 12, 2026
Report Date: May 06, 2026

Project Name: Foothill Orchards
Address: 5450 N CANYON RD, Provo, UT 84604
Project #: PLRZ20260115
Application Type: Rezone
Application Expiration: This application will expire March 18, 2027. For exceptions to this rule see Section 15.01.040 Provo City Code.

Your plans have received approval from the Coordinators Review Committee.

Project Review

Review:	Building Inspection Review	Review Date:	04/21/2026
Department:	Development Services		
Reviewer	Rich Bennett		
Email:	rbennett@provo.gov		
Phone:	8019955053		
Approval Status:	No Revisions Required		
Comments:			

Review:	Fire Review	Review Date:	04/23/2026
Department:	Fire		
Reviewer	Koby Hubbs		
Email:	khubbs@provo.gov		
Phone:	8018526321		
Approval Status:	No Revisions Required		
Comments:			

Review:	Parks and Recreation Review	Review Date:	05/05/2026
Department:	Parks and Recreation		
Reviewer	John Bunderson		
Email:	JBunderson@provo.gov		
Phone:	8018526643		
Approval Status:	No Revisions Required		
Comments:			

Review:	Planning Review	Review Date:	04/30/2026
Department:	Development Services		
Reviewer	Jessica Dahneke		
Email:	jdahneke@provo.gov		
Phone:	8018526413		
Approval Status:	No Revisions Required		

Comments: Documentation for the rezone meets the requirements, the concept plan that is going concurrently with this rezone still has concerns.

Review:	Public Works Review	<u>Review Date:</u>	05/05/2026
Department:	Public Works		
Reviewer	Shane Jones		
Email:	sjones@provo.utah.gov		
Phone:	8018526773		

Approval Status: No Revisions Required

Comments:

Review:	Power Review	<u>Review Date:</u>	04/22/2026
Department:	Power		
Reviewer	Jonathan Saluone		
Email:	jsaluone@provo.utah.gov		
Phone:	8018526831		

Approval Status: No Revisions Required

Comments:

Conditions

ITEM 6 Reza Fakhrieh requests concept plan approval for a 155-acre residential development with 64 lots and 38 townhomes in proposed A1.1CHPD (Agricultural with Critical Hillside Overlay and Performance Development Overlay), RACHPD (Residential Agricultural with Critical Hillside Overlay and Performance Development Overlay), and R1.20CHPD (Residential Single-family with Critical Hillside Overlay and Performance Development Overlay) Zones, located approximately at 5450 N Canyon Rd. North Timpview Neighborhood. Jessica Dahneke (801) 852-6413 jdahneke@provo.gov PLCP20260124

APPLICANT:	Reza Fakhrieh
PROPERTY OWNER:	BRMK Provo Canyon LLC, S&E Smith #1 LLC, S&E Smith #2 LLC
PARCEL ID:	See Attachment 1
ACREAGE:	155
CURRENT LEGAL USE:	Vacant
GENERAL PLAN DESIGNATION:	Residential and Agricultural
CURRENT ZONE:	Open Space Preservation and Recreation
APPLICATION TYPE:	Administrative Decision – conceptual approval, applicant will need to bring Project Plan back to the Planning Commission if zone change is approved.

PROPERTY HISTORY

On December 2, 2025, the City Council approved an ordinance to annex this property into the city.

NEIGHBORHOOD FEEDBACK

This application was presented at the North District Meeting on April 1st, 2026. Concerns raised by the residents in attendance included the impact on traffic along Canyon Rd, the construction impacts, conservation and preservation of open space, and fire risk. A poll of the residents attending the meeting had 11 attendees in favor of keeping the area zoned OSPR and 21 in favor of the project. Since the meeting, staff have received additional emails expressing similar concerns to those raised in the district meeting.

PROJECT SUMMARY

The applicant is seeking a zone map amendment and concept plan approval for 155 acres of property located at 5450 North Canyon Road. The proposal divides the site into three base zones — R1.20, Residential Agricultural (RA), and Agricultural (A1.1). The Critical Hillside (CH) overlay and Performance Development (PD) overlay zones will be applied across the entire project area.

The zoning distribution reflects the varying topography of the site: the eastern portion, where slopes are most pronounced, is proposed for the A1.1 zone with larger single-family lots; the southern portion, where grades are somewhat less severe, is proposed for the RA zone with smaller single-family lots; and the western portion is proposed for R1.20 zoning with townhomes. The surrounding area is predominantly zoned agricultural and single-family residential, with small portions of Open Space, Preservation, and Recreation and Medium Density Residential located to the north.

The Concept Plan application and the associated Rezone (see item 5 staff report) application have been reviewed by the CRC. As shown in the CRC report included as attachment 7, the concept plan has items that still need to be addressed. However, the applicant has requested that these applications be brought before the Planning Commission at this time. The additional details and changes that staff need to see could be handled with the future Project Plan and Subdivision applications. In conjunction with the rezone and concept plan, the applicant has proffered a development agreement, the details of which will be worked out with Staff and City Council.

STAFF ANALYSIS

Proposed Use

Residential Development including townhomes and single-family lots

A1.1 Zone

Lot Standards:

Required:

Lot area: 1 acre

Lot Width: 100 feet

Lot Depth: 100 feet

Lot Frontage: 60 feet

Finding: Complies

Proposed:

Lot area varies from .47 of an acre to 2.61 acres

Lot Width varies from 98 feet to 428 feet

Lot Depth varies from 150 feet to 377 feet

Lot Frontage varies from 0 feet to 255

Finding: The CH overlay allows for lots to be clustered provided they are smaller in area than the base zone allows. It also allows for a reduction of lot width and depth by 25%. The current

proposal does not comply with all the clustering requirements of the CH overlay or the base zone.

Setback Requirements:

Required:

Front yard 30 feet

Side yard: 10 feet

Rear yard: 30 feet

Proposed:

The building footprint is not shown in the documents provided

Finding: Details unknown

Building Height:

Maximum:

35 feet

Proposed:

building height is not shown in the documents provided

Finding: Details not provided

Parking and Access:

Required:

2 spaces per unit

Proposed:

While no floor plans have been uploaded, the applicant has uploaded documentation stating that each unit will have a minimum of a 2-car garage and 2 spaces on the driveway.

Finding: Complies

RA Zone

Lot Standards:

Required:

Lot area: 1/2 an acre

Lot width: 100 feet

Lot depth: 100 feet

Lot frontage: 60 feet

Finding: Complies

Proposed:

Lot area varies from 0.46 of an acre to 1.4 of an acre

Lot width varies from 115 feet to 214 feet

Lot depth varies from 158 feet to 260 feet

Lot frontage varies from 105 feet to 179 feet

Finding: The CH overlay allows for lots to be clustered provided they are smaller in area than the base zone allows. It also allows for a reduction of lot width and depth by 25%. The current proposal does not comply with all the clustering requirements of the CH overlay or the base zone.

Setback Requirements:

Required:

Front yard 30 feet

Side yard 10 feet

Rear yard 30 feet

Proposed:

The building footprint is not shown in the documents provided

Finding: Details not provided

Building Height:

Maximum:

35 feet

Proposed:

The building height is not shown in the documents provided

Finding: Details not provided

Parking and Access:

Required:

2 spaces per unit

Proposed:

While no floor plans have been uploaded, the applicant has uploaded documentation stating that each unit will have a minimum of a 2-car garage and 2 spaces on the driveway.

Finding: Complies

R1.20 Zone

Lot Standards:

Required:

Lot area: 20,000 square feet

Lot width: 100 feet

Lot Depth: 100 feet

Lot frontage: 35 feet

Proposed:

Townhomes with common space in place of single-family lots.

Finding: The PD overlay allows for attached townhomes to be built provided there are not more than 6 units per building. Concept plan shows groupings of 4 townhomes; this complies with the PD overlay.

Setback Requirements:

Required:

Front yard: 23 feet from back of curb

Side yard: 10 feet

Rear yard: 20 feet

Proposed:

The PD overlay allows homes to be built either within 5 feet of the street or at least 20 feet back. The details have not been specifically provided; however, their upload for parking states there will be 2 driveway spaces implies the townhomes will be setback 20 feet or more

Finding: Complies

Building Height:

Maximum:

30 feet for front elevation, 35 feet for all other elevations

Proposed:

The building height is not shown in the provided documents

Finding: Details not provided

Parking and Access:

Required:

3 spaces per unit

Proposed:

The applicant has uploaded example townhome floor plan showing a 2-car garage. While the exact setbacks for the townhomes have not been shown the applicant has uploaded documentation stating that each unit will have a minimum of a 2-car garage and 2 spaces on the driveway.

Finding: Complies

Other Considerations

CRITICAL HILLSIDE OVERLAY

Open Space:

Required:

All areas with a slope greater than 30% must remain in natural private or natural public open space

Proposed:

The uploaded limit of disturbance map shows some areas of 30% slope being disturbed rather than remaining open space

Finding: Does not comply

Design Standards:

Required:

14.33A.120 addressing building mass, materials, fencing, parking etc.

Proposed:

Details not yet provided.

Finding: Design standards are typically evaluated in detail at a project plan level, based on uploads the applicant understands these standards and will meet them before the final project plan is approved.

Cluster Development

Required:

Grouping residential properties on lots smaller ones than allowed in the underlying zone.

25% of the proposed cluster development is preserved as passive or active natural open space.

No more than 30 lots are allowed in a single cluster. Each cluster shall be separated from other residential clusters by a minimum of 100 feet.

Proposed:

Lots are not currently smaller than what is allowed in the underlying zone

Foothill orchards would be required to have 38 acres of open space to meet the 25%, the current concept plan has roughly 60 acres.

The townhome section has more than 30 units.

Findings: Does not comply

PERFORMANCE DEVELOPMENT OVERLAY ZONE

Open Space:

Required:

10% of the total gross acreage in a PD overlay. Foothill orchard would be required to have approximately 15.12 acres of open green space

Proposed:

Current concept plan proposes approximately 60 acres.

Finding: Complies

Design Standards:

Required:

14.31.080 addressing design theme, streets, landscaping per unit, hardscape, common activity area etc.

Proposed:

Details not yet provided

Finding: Design standards are typically evaluated in detail at a project plan level, based on uploads the applicant understands these standards and will meet them before the final project plan is approved.

Density Bonus:

Required:

For a 10% density bonus the project must have 4 or more types of housing models.

Proposed:

The townhome model will all be the same; however, the single-family homes are proposed as custom builds.

Finding: Given that the single-family homes will be custom-built staff believe there will be more than 4 types of housing models. This complies with the density bonus calculation.

APPLICABLE ZONING CODES

Provo City Code 14.31

<https://provo.municipal.codes/Code/14.31>

Provo City Code 14.33A

<https://provo.municipal.codes/Code/14.33A>

Provo City Code 14.08

<https://provo.municipal.codes/Code/14.08>

Provo City Code 14.09

<https://provo.municipal.codes/Code/14.09>

Provo City Code 14.10

<https://provo.municipal.codes/Code/14.10>

Provo City Code 15.05.160

<https://provo.municipal.codes/Code/15.05.160>

POSSIBLE MOTIONS AND FINDINGS

The Planning Commission may make any of the following findings:

1. **Approve:** The proposal is consistent with city code. *Make a motion that the Planning Commission approves the proposed concept for a 155-acre residential development with 64 lots and 38 townhomes subject to approval of a zone map amendment to A1.1CHPD (Agricultural with Critical Hillside Overlay and Performance Development Overlay), RACHPD (Residential Agricultural with Critical Hillside Overlay and Performance Development Overlay), and R1.20CHPD (Residential Single-family with Critical Hillside Overlay and Performance Development Overlay) Zones. (state findings/reasons).*
2. **Deny:** The proposal is not consistent with city code. *Make a motion that the Planning Commission denies the proposed concept for a 155-acre residential development with 64 lots and 38 townhomes located at approximately 5450 North Canyon Road. (state findings/reasons).*
3. **Continue:** New information presented at the public hearing or additional study needs to be done. *Make a motion that the Planning Commission continues the proposed concept for a 155-acre residential development with 64 lots and 38 townhomes located at approximately 5450 North Canyon Road (state findings/reasons).*

ATTACHMENTS

1. List of parcel numbers
2. Aerial view of the property
3. Limit of Disturbance Map
4. Concept Plan
5. Example Townhome Elevation and Floor Plan
6. Open Space and Common Activity Area Plan
7. CRC report

ATTACHMENT 1 – LIST OF PARCEL NUMBERS

20:014:0040

20:014:0042

20:014:0101

20:014:0006

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20:017:0015

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20:017:0011

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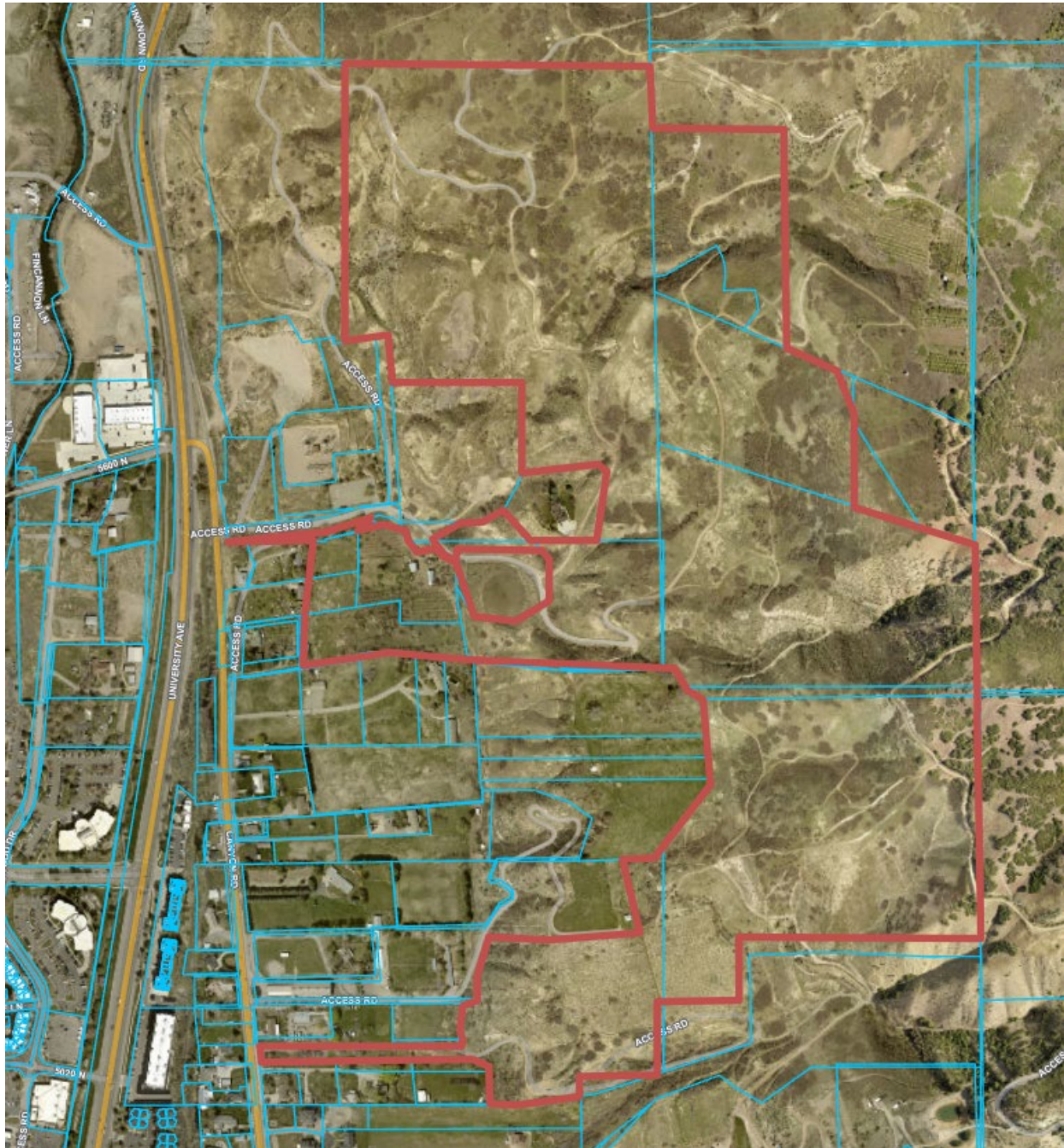
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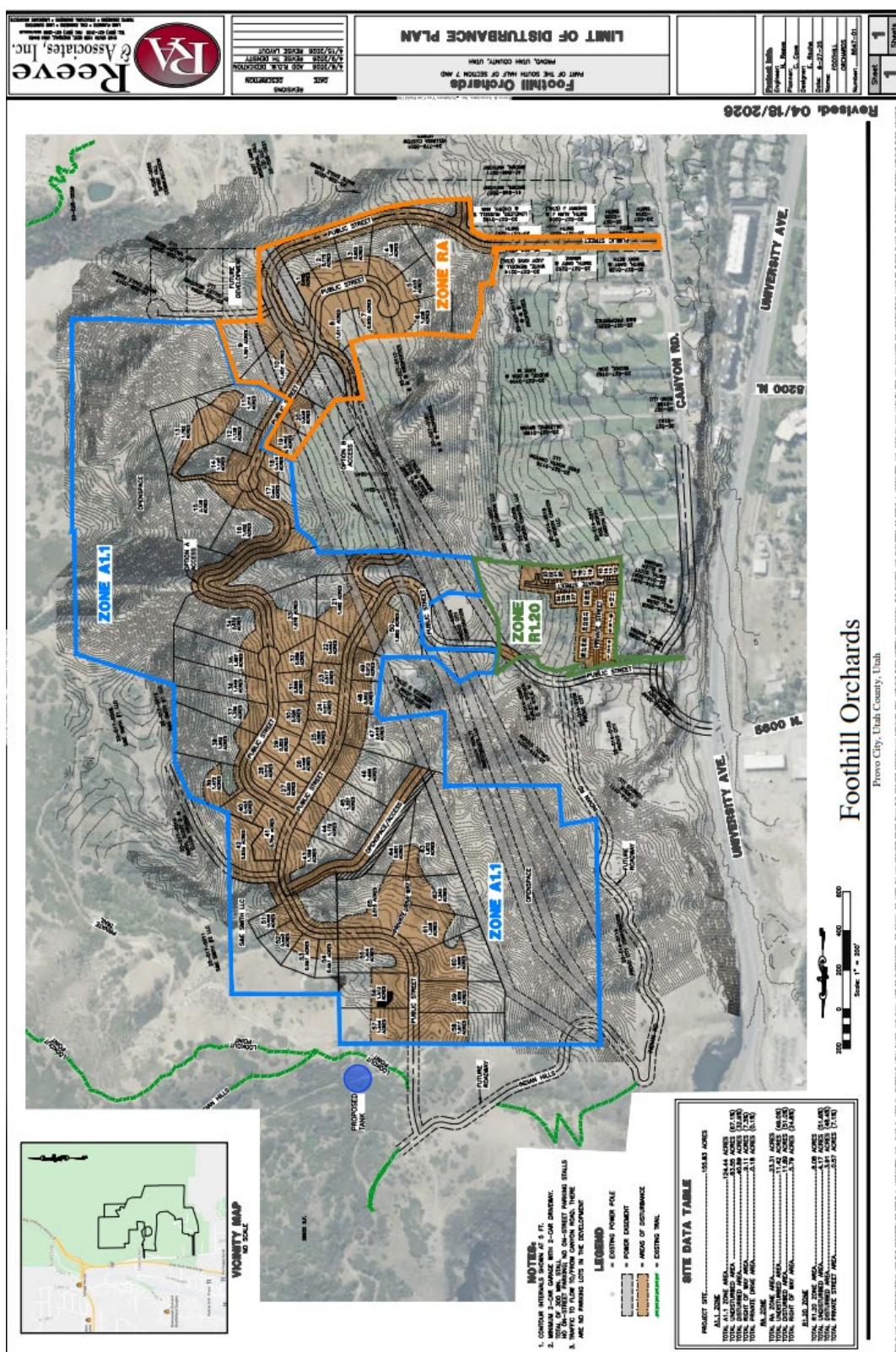
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ATTACHMENT 2 – AERIAL VIEW OF THE PROPERTY



ATTACHMENT 3 – PROPOSED ZONE EXHIBITS

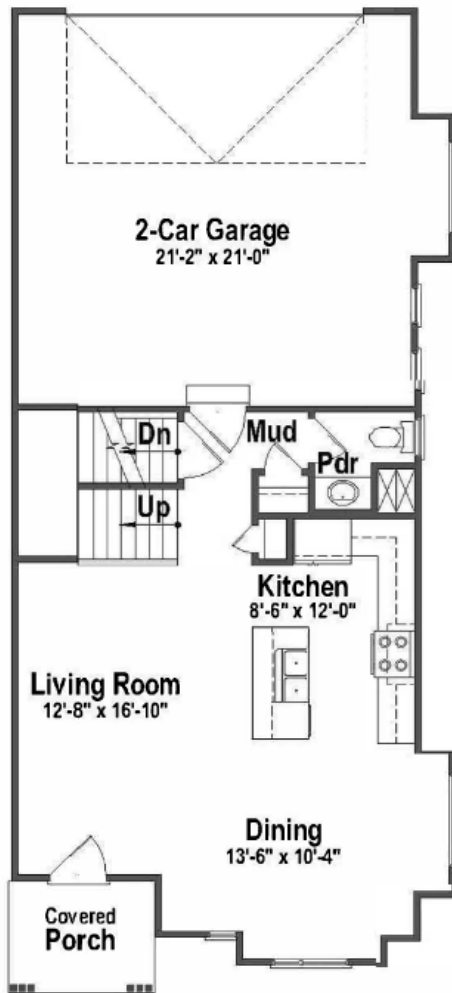


ATTACHMENT 4 – CONCEPT PLAN

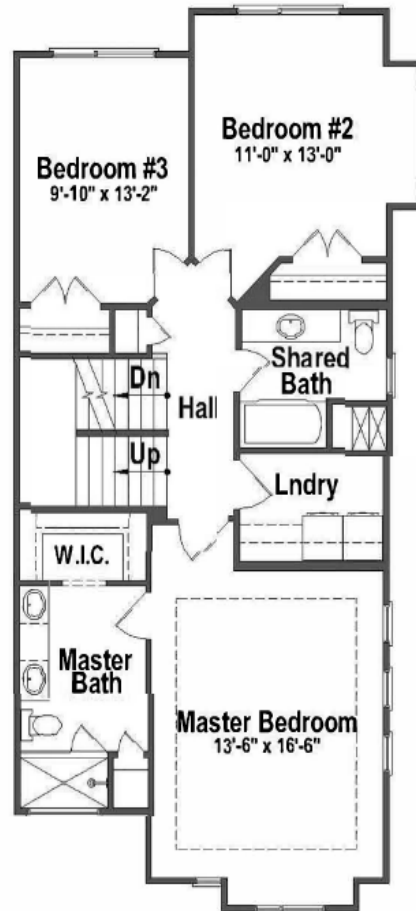


ATTACHMENT 5 – EXAMPLE TOWNHOME ELEVATION AND FLOOR PLAN

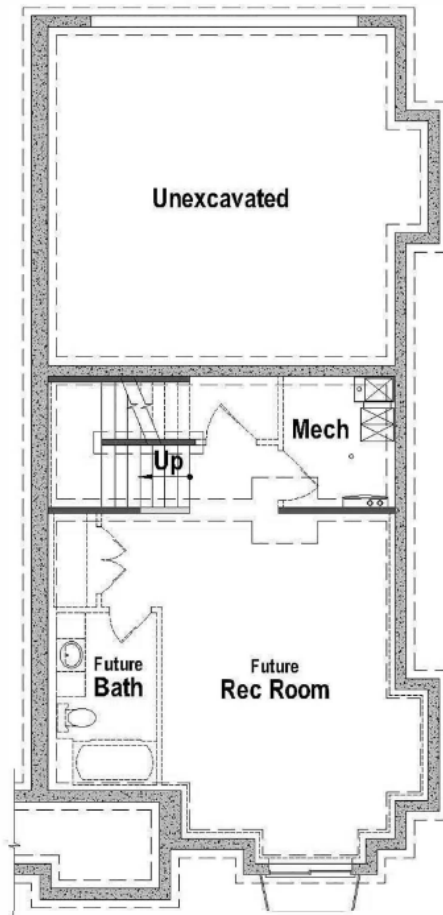




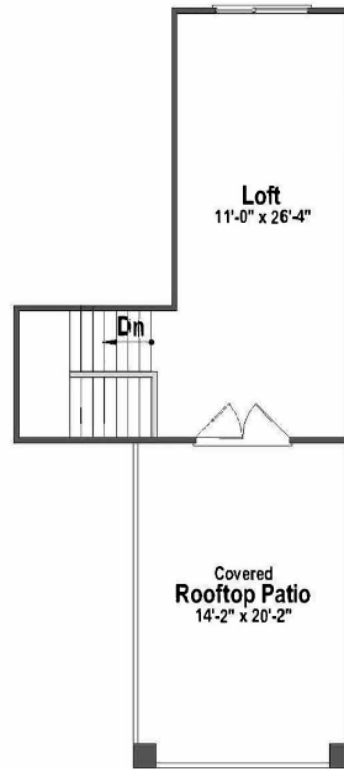
**Primeur (Narrow Modern)
Main Floor Plan**



**Primeur (Narrow Modern)
Second Floor Plan**



**Primeur (Narrow Modern) Basement
Floor Plan**



**Primeur (Narrow Modern) Terrace
Floor Plan**

ATTACHMENT 6 – OPEN SPACE AND COMMON ACTIVITY AREA PLAN

REGULATORY FRAMEWORK

The Foothill Orchards Planned Development Overlay Zone (PDOZ) application is subject to the open space and common activity area standards of Provo City Code § 14.31.080(4), interpreted in conjunction with the definitions established in § 14.31.020. The applicant has reviewed and understands these requirements in full. A detailed open space plan - including final acreage tabulations, phasing allocations, and activity area programming - will be provided in the Development Agreement.

The core requirements acknowledged by the applicant are summarized in the table below:

REQUIREMENT	CODE STANDARD
Minimum Open Green Space	At least 10% of total gross acreage must be devoted to consolidated open green space, exclusive of required yards and building setbacks.
Hardscape Limitation	Qualifying hardscape elements — walkways, patios, pavilions, gazebos, and water features — may be included, provided they do not exceed 15% of the total required open green space.
Common Activity Area Minimum	Open green space must include, at minimum, either a playground with play equipment or a pathway system with benches and tables through a natural or landscaped area.
Developed Common Activity Area Ratio	For subdivided one-family lots, developed common activity area must be provided at a ratio of 1,000 square feet per lot.
Phasing	Each phase of development shall provide its proportionate share of required open green space concurrent with that phase.
Natural Features	The development shall be designed to preserve and incorporate the site's natural features - including drainage swales, rock outcroppings, and native vegetation - into the open space network.
Ownership	Per § 14.31.020, open green space may be held in common or private ownership. Developed common activity areas shall be held in common ownership through an HOA or otherwise made available to all residents.

GENERAL OPEN SPACE APPROACH

Foothill Orchards is a hillside development with significant natural character, and the open space network will be designed to reflect and preserve that character. The applicant intends to exceed the minimum 10% open green space threshold by incorporating the site's natural topography, slopes, drainageways, and native vegetation as meaningful components of the open space network - not merely as leftover or unbuildable land.

Open space will be organized as an interconnected network rather than isolated pockets, linking residential clusters/camps to natural areas, activity nodes, and the broader Northeast District trail system. As required by code, portions of the open green space and common activity areas will be held in common ownership and maintained by a Foothill Orchards

Homeowners Association (HOA), with governance and maintenance obligations formalized in the CC&Rs and the Development Agreement.

OPEN SPACE TYPOLOGIES

The open space network is anticipated to include the following general typologies, operating as an integrated system. Final boundaries, acreage, and programming will be defined in the Development Agreement.

Hillside Conservation Areas

Certain steeper, non-developable portions of the site - particularly those subject to Critical Hillside Overlay Zone (CHOZ) constraints - will be incorporated into the open space network as natural conservation areas. These areas preserve native vegetation, manage erosion, and provide visual open space buffers consistent with the hillside character of the Northeast District.

Linear Greenway / Trail Corridor

A pedestrian greenway will serve as the primary spine connecting residential clusters/camps, activity nodes, and external trail connections. This corridor will incorporate pathways, seating, and interpretive or landscape elements reflecting the agricultural heritage of the area while providing residents of the Northeast District connectivity and accessibility. This element directly satisfies the code's minimum requirement for pathways with benches through a natural or planted landscaped area.

Neighborhood Commons (Activity Nodes)

Distributed throughout the development, these nodes will function as the developed common activity areas required by code. Programming will include elements such as pavilions, sitting areas, and gathering spaces, scaled appropriately to the residential clusters they serve. Illustrative amenity types may include:

- Playground or similar structures with age-appropriate equipment
- Multi-use sport courts or recreation areas
- Covered pavilions and outdoor gathering areas
- Communal gathering areas suitable for informal recreation
- Low-voltage pedestrian lighting consistent with hillside Dark Sky considerations

Specific amenities, dimensions, and locations for each node will be detailed in the Development Agreement.

PHASING & PROPORTIONATE PROVISION

The applicant acknowledges the requirement that each phase of development provide its proportionate share of required open green space and developed common activity area concurrent with that phase. If there is phasing of the development, a phasing plan with corresponding open space allocations will be submitted as part of the Development Agreement, ensuring that no phase of residential development is recorded without its required open space being established or bonded concurrent with that phase.

Open space phasing will be structured so that residents of each phase have meaningful access to active and passive recreational amenities from the time of initial occupancy, with the full network completed as subsequent phases are recorded.

OWNERSHIP & MAINTENANCE

Certain open green space and developed common activity areas will be conveyed to and maintained by the Foothill Orchards Homeowners Association (HOA). The HOA will be established prior to the recording of the first subdivision phase. Maintenance obligations, funding mechanisms, and use restrictions will be codified in the HOA CC&Rs and incorporated by reference into the Development Agreement.

It is anticipated that the HOA governance structure will address, at minimum, the following:

- Mandatory assessments sufficient to fund landscape maintenance, irrigation, and facility upkeep
- Prohibition on conversion of open green space to private residential use or enclosure
- Compliance with Provo City standards for any future improvements to designated open space
- Maintenance obligations for trail easements connecting to the public trail network, where applicable

The applicant does not propose dedication of open space to Provo City, consistent with the ownership flexibility expressly permitted under § 14.31.020.

SUMMARY STATEMENT

Foothill Orchards Development Group understands and acknowledges the open space and common activity area requirements of Provo City Code § 14.31.080(4). The development is designed with an open space network that reflects the natural hillside setting, meets or exceeds the minimum quantitative thresholds, and provides meaningful, programmed amenity areas for future residents. Full details - including acreage tabulations, activity area programming, phasing allocations, and HOA governance provisions - will be provided in the Development Agreement submitted concurrent with subdivision platting.

Submitted in support of the Foothill Orchards Rezone and Concept Plan Application

Foothill Orchards Development Group | Provo City, Utah

ATTACHMENT 7 – CRC REPORT

Coordinator Review Committee Report

For reference, redlined plans may be found online at provo.org/portal under the “My Items” tab.

Submitted: March 17, 2026
Report Date: April 08, 2026

Project Name: Foothill Orchards
Address: 5450 N CANYON RD, Provo, UT 84604
Project #: PLCP20260124
Application Type: Concept Plan
Application Expiration: This application will expire March 18, 2027. For exceptions to this rule see Section 15.01.040 Provo City Code.

Please submit a “Complete Set” of revised plans on www.provo.org/portal along with a “Review Response” sheet that replies to each comment on this CRC Report.

Project Review

Review:	Building Inspection Review	Review Date:	03/19/2026
Department:	Development Services		
Reviewer	James Anderson		
Email:	janderson@provo.gov		
Phone:	8018526411		
Approval Status:	No Revisions Required		
Comments:			

Review:	Fire Review	Review Date:	04/07/2026
Department:	Fire		
Reviewer	Koby Hubbs		
Email:	khubbs@provo.gov		
Phone:	8018526321		
Approval Status:	No Revisions Required		
Comments:			

Review:	Parks and Recreation Review	Review Date:	04/01/2026
Department:	Parks and Recreation		
Reviewer	John Bunderson		
Email:	JBunderson@provo.gov		
Phone:	8018526643		
Approval Status:	Revisions Required		
Comments:	Show Irrigation Canal and access easements Address existing Indian Hills Road Trail stops that have an electrical power line easement impact Clarify 20' Asphalt Trail / Easement access Clarify Public access to Open space versus private Coordinate roadway and utility access to the Indian Road Trailhead		

Coordinate a public accessible trail plan with Parks and Recreation department

Review:	Planning Review	Review Date:	04/01/2026
Department:	Development Services		
Reviewer	Jessica Dahneke		
Email:	jdahneke@provo.gov		
Phone:	8018526413		
Approval Status:	Revisions Required		
Comments:			
Corrections:	More Documents Required Please upload a map showing the limit of disturbance for the area proposed to be zoned Critical Hillside.		
Corrections:	Miscellaneous The proposed density is over what is allowed based of the density calculations from 14.31.070 which based on rough calculations is approximately 87 units. In order to accurately calculate density, please include how much acreage will be dedicated to streets.		
Corrections:	Miscellaneous While not all the requirements of 14.31 and 14.33A are required at this stage of the plan, the Project Plan will be reviewed against both sections of code please review both sections while preparing any future project plan submittal.		
Review:	Public Works Review	Review Date:	04/01/2026
Department:	Public Works		
Reviewer	Shane Jones		
Email:	sjones@provo.utah.gov		
Phone:	8018526773		
Approval Status:	Revisions Required		
Comments:			
Corrections:	Miscellaneous 1. Provide two (2) point of ingress and egress to thirteen (13) or more lots, or thirteen (13) or more dwelling units. Access must be shown as being completed with the development proposed. Completion of accesses "in the future" that are required for the development proposed is unacceptable. (Provo City Code 14.33A.130 and 15.03.200)		
Corrections:	Miscellaneous 2. Show all utilities in public roadways.		
Corrections:	Miscellaneous 3. Provide a conceptual layout for undeveloped or partially developed property within five hundred (500) feet of the proposed subdivision. (Provo City Code 15.03.300(2)(a)(iii) and 15.04.010)		
Review:	Power Review	Review Date:	03/25/2026
Department:	Power		
Reviewer	Jonathan Saluone		
Email:	jsaluone@provo.utah.gov		
Phone:	8018526831		
Approval Status:	No Revisions Required		
Comments:	The Energy Dept. is approving this as concept plan only, for Final Project approval the owner/developer needs to coordinate power design/layout and electrical requirements/specifications with the Energy Dept.		

Conditions

1	Miscellaneous
Due:	The plans I reviewed showed a grade of over 10% to every home in this subdivision. As this stands every home/townhome built beyond the 10% grade will need to have a residential sprinkler system. This will apply to all grades between 10-15%. No homes will be approved beyond the 15% max grade allowance. Additionally all homes in this subdivision are located in our wildland urban interface (WUI) zone and will require planned fuel breaks recorded in HOA CCR's, and the structures must be built to the current WUI standards.
Department:	[Koby Hubbs @ 03/19/2026 4:34 PM] Todd Trane (developer) acknowledged the conditions and agreed to sprinklers and WUI requirements. [Koby Hubbs @ 04/07/2026 9:29 AM]
Fire	
